12 ANGRY MEN

Written by

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NOTE: The notes on characters are extremely brief, since it is felt that what they are and who they are will he revealed in their dialogue and actions during the course of the film.

FOREMAN: 35 years old. Assistant high school football coach.

A small, petty man who is at first vary of, and then impressed with the authority he has. Handles himself quite formally. Not overly bright, but dogged.

Juror #2: 38 years old. Bank clerk. A meek, hesitant man who finds it difficult to maintain any opinions of his own.

Easily swayed and usually adopts the opinion of the last person to idiom he has spoken.

Juror #3: 40 years old. Head of messenger service. A very strong, very forceful, extremely opinionated man within whom can be detected a streak of sadism. A humorless man who is intolerant of opinions other than his own, and accustomed to forcing his wishes and views upon others.

Juror #4: 50 years old. Stockbroker. A man of wealth and position. A practiced speaker who presents himself well at all times. Seems to feel a little bit above the rest of the Jurors. His only concern is with the facts in this case and he is appalled with the behavior of the others. Constantly preening himself, combing his hair, cleaning his nails, etc.

Juror #5: 25 years old. Mechanic. A naive, very frightened young man who takes his obligations in this case very seriously but who finds it difficult to speak up when his elders have the floor.

Juror #6: 33 years old. Housepainter. An honest, but dull-witted man who comes upon his decisions slowly and carefully.

A man who finds it difficult to create positive opinions, but who must listen to and digest and accept these opinions offered by others which appeal to him moat.

Juror #7: 42 years old. Salesman. A loud, flashy, glad-handed sales man type who has more important things to do than to sit on a Jury. He is quick to show temper, quick to form opinions on things about which he knows nothing. He is a bully, and, of course, a coward.

Juror #8: 42 years old. Architect. A quiet, thoughtful, gentle man. A man who sees many sides to every question and constantly seeks the truth. A man of strength tempered with compassion. Above all, a man who wants Justice to be done, and will fight to see that it is.

Juror #9: 70 years old. Retired. A mild, gentle old man, long since defeated by life, and now merely waiting to die. A man who recognizes himself for what he is, and mourns the days

when it would have been possible to be courageous without shielding himself behind his many years. From the way he take pills whenever he is excited, it is obvious that he has a heart condition.

Juror #10: 46 years old. Garage owner. An angry, bitter man.

A man who antagonizes almost at sight. A bigot who places no values on any human life save his own. A man who has been no where and is going nowhere and knows it deep within him. He has a bad cold and continually blows his nose, sniffs a ben-zedrine inhaler, etc.

Juror #11: 48 years old. Watchmaker. A refugee from Europe who has come to this country in 1941. A man who speaks with an accent and who is ashamed, humble, almost subservient to the people around him, but a man who will honestly seek Justice because he has suffered through so much injustice.

Juror #12: 30 years old. Advertising man. A slick, bright advertising man who thinks of human beings in terms of percentages, graphs and polls, and has no real understanding of people. A superficial snob, but trying to be a good fellow. Throughout the film he doodles on a scratch pad.

AND

THE JUDGE

THE COURT CLERK

THE GUARD

THE two alternate JURORS

ADD (IF DESIRED)

THE COURT STENOGRAPHER

FADE IN:

1 EXT. LONG SHOT - N. Y. - COURT OF GENERAL SESSIONS - DAY 1

A large, imposing tallying, gray, impressive as a background for the comings and goings of a number of ordinary people on an ordinary day. Camera holds on steps and building front from a distance and then dollies in slowly.

DISSOLVE TO:

LONG SHOT - THE LOBBY

Seething with activity, people of all kinds walking swiftly, purposefully to and from elevators, news stares, etc., others

standing, waiting. Guards stationed at various posts. Camera pans across lobby, and then dollies into a bank of elevators.

A number of people crowd into one. The door closes.

DISSOLVE TO:

LONG SHOT - A LONG CORRIDOR UPSTAIRS

The elevators on left. Many doorways to various courtrooms on right. Each door marked with a hanging sign. The first sign reads "Court of General Sessions. Part I". The second sign reads "Court of General Sessions. Part II" etc. An elevator door opens and a number of people exit and walk down the corridor.

Other people, men and women, stand in the corridor talking.

The whole feeling is one of movement, activity, intense concentration. Everyone has a purpose. Camera dollies down the corridor, following group of people who exited from elevator. People peel off from the group at various doors. At each door stands a guard.

People move in and out of the doors. Camera reaches the door marked "Part VI", and pans around to face the door. A guard stands in front of it, impassively. No one else is in front of the door, as compared to the knots of whispering people in front of all the other doors. The case going on in "Part VI" obviously has very little general interest.

Through the glass window of the door we can see, far in the background, the judge at his bench. He is facing to his left, and talking. We hear nothing. He stops and turns to his right. He raises his hand as if railing a waiter.

DISSOLVE TO:

CLOSE UP - AN EMPTY WATER GLASS ON A TRAY

From the noise of the corridor we are now in the deathlike still ness of a courtroom. A hand places a freshly-filled pitcher of water on the tray. A pair of frauds fills a glass from the pitcher.

Camera pans with glass as it is raised. Camera holds on close-up of Judge, drinking the water. He finishes, puts the glass down, and turns to his left again. He clears his throat. Then he begins to speak.

JUDGE
Pardon me, gentlemen.
(Gravely)
To continue, you've heard a long and complex case. Murder in the first degree ... premeditated homicide ... is the most serious charge tried in our criminal courts.

MEDIUM SHOT - THE JURY

From. judge's angle. Seated in the jury box, listening intently to the judge. We see the 14 members of the jury.

This includes the two alternates who sit on the far right side of the jury, one behind the other. The jury sits in numerical order reading from left to right: the through #6 in the front row, #7-#12 in the rear row. As the judge speaks, camera dollies slowly in, still holding on jury but excluding the alternates.

JUDGE
You've listened to the testimony, and you've had the law read to you and interpreted as it applies to this case. It now becomes your duty to sit down to try and separate the facts from the fancy. One man is dead. The life of another is at stake. I urge you to deliberate honestly and thoughtfully.

Camera is now in close on #'s 1, 2, 7 and 8. It begins to par slowly right. #7 fidgets endlessly. #10 sniffs as if he has a cold. #3 looks coldly off in the direction in which the defendant sits. All other jurymen watch the judge, listening intently. As the judge finishes his lines, camera is on #'s 5, 6, 11 and 12.

JUDGE
If there is a reasonable doubt in your minds as to the guilt of the accused ...a reasonable doubt... then you must bring me a verdict of not guilty. If, however, there is no reasonable doubt, then you must, in good conscience find the accused guilty. However you decide, your verdict must be unanimous. In the event you find the accused guilty bench will not entertain a recommendation for mercy. The death sentence is mandatary in this case.

The judge pauses for a moment. There is a stillness in the room.

CLOSE UP JUDGE - ENTIRE JURY IN BACKGROUND

The judge's profile fills the left side of the frame. In right background, we see the jury box.

JUDGE
I don’t envy you your job. You are faced with a grave responsibility. Thank you, gentlemen.

There is a pause. The judge turns away from the jury and nods in another direction.

CLOSE UP THE FACE OF THE COURT CLERK

CLERK
The alternate jurors are excused.

MEDIUM SHOT - THE JURY

AU of their heads turn to camera right. Self-consciously the two alternates rise and move awkwardly out of the jury box.

When they are gone, we hear the clerk.

CLERK
The Jury will retire.

The members of the Jury look hesitantly at each other, each reluctant to be the first to stand. Finally #3 stands up.

Then the others begin to rise and file slowly off left until the Jury box is empty.

MEDIUM SHOT - THE JURY

They file through a long corridor, than through one door, then another. They are silent, serious. All we hear is the sound of their footsteps. Credits are superimposed over this scene. As credits end:

DISSOLVE TO:

MEDIUM SHOT - THE JURY ROOM

The room is empty, silent save for the sounds of traffic twelve floors below. In center of room is a large scarred table and twelve chairs. There are four other chairs against the opposite the windows. Along one wall are three windows through which wee can see the New York skyline. On the opposite wall is an electric clock and an electric fan. At one end of the Jury room is a coat rack, on either side of which is a door, one lettered "men" and the other lettered "women". Against the fourth wall is an old-fashioned water cooler. There are pencils, pads, ashtrays on the table.

Nothing else. The room is drab, bare, in need of a painting.

Camera holds on room then dollies in toward the door as we hear footsteps outside. The doer is opened by a uniformed guard. On the door are lettered the words "Jury Room". The guard stands against the door, holding it open, as the

members of the jury file into the room. He holds a dip-board and pencil, and we can see his lips moving, counting the jurymen as they enter. Four or five of the jurymen light cigarettes immediately. They move into the room.

Juror #2 goes to the water fountain. Juror #9, the old man, enters hastily and goes toward the men's room. Juror #7 enters the room last. The guard steps into the room and closes the door. Again he begins to count the jurors. Camera slowly pans with #7 as he walks across the room toward the windows. The foreman has seated himself at the head of the table. #11 and #4 also sit at the table. #11 begins to make notes in a little pad. #4 reads the newspaper. The others move awkwardly about the room.

They are all at ease, do not really know each other to talk to, wish they were anywhere but here. There is no conversation for a moment. #7 reaches the window. Camera is on him and #6 who looks out at the skyline. #7 offers a stick of gum to him. He shakes his head. #7 offers the gum to #8 who also locks out window. #8 smiles.

#8
No thanks.

#7
(to #6)
Y'know something'? I phoned up for the weather this morning. This is the hottest day of the year.

#6 nods and continues to look out window.

#7

You'd think they'd at least air condition the place. I almost dropped dead in court.

He reaches over and opens the window wider.

MEDIUM SHOT - CENTERED ON GUARD

He has finished counting them.

GUARD
Okay, gentlemen. Everybody's here. If there's anything you went I'm right outside. Just knock.

He exits, closing the door as camera dollies back to include Juror #5, the youngest Juryman, who watches the door. We hear the lock click. #5 half grins, self-consciously.

#5
I never knew they locked the door.

#10
Sure they lock the door. What'd you think?

#5
I don't know. It just never occurred to me.

#10 gives him the look of a professional know-it-all, and then turns and takes off his jacket. He walks across room to coat rack, camera dollying with him. He passes the Foreman who stands at the head of the table tearing up little slips of paper for ballots, and he stops.

#10
Hey, what's that for?

FOREMAN
Well, I figured we might want to vote by ballots.

#10
(grinning)
Great idea! Maybe we can get him elected senator.

#10 laughs until he begins to cough. He moves off to the coat

The Foreman looks at his watch and compares it with the clock. The 3rd Juror takes a cup of water from the water-cooler, moves to the 2nd Juror and looks around the room as he sips the water.

#3
(to the #2)
How'd you like it?

#2
(mildly)
I don't know, it was pretty interesting.

#3
Yeah? I was falling asleep.

#2
I mean, I've never been on a jury before.

#3
Really? I've sat on juries, and it always amazes me the way these lawyers can talk, and talk and talk, even when the case is as obvious as this one. I mean, did you ever hear so much talk about nothing?

#2
Well, I guess they're entitled.

#3
Sure they are. Everybody deserves a fair trial. That's the system. Listen, I'm the last one to say anything against it, but I'm telling you sometimes I think we'd be better off if we took these tough kids and slapped 'em down before they make trouble, you know? Save us a lot of time and money.

#2 looks at him nervously, nods, gets up and walks to the water cooler, camera dollying with him. He pours himself a drink and stands alone sipping it. We hear movement in the room during all of this, and quiet ad lib conversation.

MEDIUM SHOT - THE ROOM FROM #2'S ANGLE

#2 big in foreground, sipping his water. #3 is hanging up his jacket. #6 and #8 are looking out windows. #4, #11 and the Foreman are seated at table. #7 and #10 are at far end of the room, talking quietly. #7 lets out a raucous laugh. #9 is still in men's room. #5 walks toward water cooler. #12 is walking over to windows. Camera dollies in on #12. As camera nears #12, #7 calls out to Foreman. #12 stops walking.

#7
Hey, how about getting started here.

#3
Yeah, let's get this over with. We've probably all got things to do.

FOREMAN
Well I was figuring we'd take a five minute break. I mean one gentleman's in the bathroom...

#7 shrugs, and turns back to #10. #5 walks over to the Foreman as #12 continues over to #8 at the window, camera moving with him. #3 continues business of hanging up his jacket, and goes to sit at table.

#5
(hesitantly)
Are we going to sit in order?

FOREMAN
(looking up)
What? I don't know. I I suppose so.

Camera moves in tight on #8 and #12. #8 is thinking hard, biting his fingernail. #12 looks out the window over his shoulder.

#12
Not a bad view.

#8 nods.

#12
What'd you think of the case?

#8 looks at him questioningly.

#12
It had a lot of interest for me. No dead spots, know what I mean? I'll tell you we were lucky to get a murder ease. I figured us for a burglary or an assault or something. Those can be the dullest. Say, isn't that the Woolworth Building?

#8
That’s right.

#12
Funny, I've lived here all my life and I've never been in it.

#8 looks out the window. #12 looks at him for a moment and then walks away. Camera holds on #8 for a moment. He stares out the window. We hear #7 laugh again.

#7
Yeah! And what about the business with the knife- I mean asking grown-up people to believe that kind of bushwash.

#8 turns during these lines to look at #7.

MEDIUM SHOT - #7 AND #10

#10 sits in a chair not at table, #7 stands over him mopping his brow

#10
Well look, you've gotta expect that. You know what you're dealing with.

#7
Yeah, I suppose.

#10 blows his nose vigorously.

#7
What's the matter, you got a cold?

#10
And how. These hot weather colds can kill you.
(he tilts his head back slightly)
I can hardly touch my nose. Know what I mean?

#7 nods sympathetically.

#7
I just got over one.

There is an awkward pause. #7 looks at his watch. Then he looks up at Foreman, who is standing at head of table.

#7
What d'ya say, Mr. Foreman?

MEDIUM SHOT - #7, #10, FOREMAN, #3, #4, FROM ANOTHER ANGLE

Foreman big in foreground, standing at head of table. #7, #10 in background. #3, #4 seated at left at table. Foreman looks around at the wall clock. #3 leans over to scan #4's newspaper.

#3
Anything exciting going on?

#4 looks up at him.

#3
(smiling)
I didn't get a chance to look at the papers today.

#4
I was just wondering how the market closed.

#3
(pleasantly)
I wouldn't knew. Say, are you on the exchange or something.

#4
I'm a broker.

#3
Well that's very interesting. Listen, maybe you can answer a question for me. I have an uncle who's been playing around with some Canadian stuff...

The foreman turns around, and, as if it is an effort, calls out loudly to the others.

FOREMAN
All right, gentlemen. Let's take seats.

There is a slow movement towards the table. #3 shrugs at #4 and turns to the Foreman.

#7
This better be fast. I get tickets to a ball game tonight. Yanks-Cleveland. We got this new kid, Modjelewski, or whatever his name is, going. He's a bull, this kid!

He shoots his hand forward and out to indicate the path of a curve ball.

#7
Shhhoooooom. A real jug handle.
(to Foreman)
Where d'ya want us to sit?

CLOSE UP - FOREMAN

When he gets used to this miner authority he will enjoy it. Right now he is still nervous.

FOREMAN
Well, I was thinking we ought to sit in order, by jury numbers.
(he points with each number)
Two. Three. Four, and so on. If that's okay with you gentlemen.

#10
What's the difference?

#4
I think it's reasonable to sit according to number.

#10
Let it be.

Foreman has looked back and forth a bit anxiously at this exchange. Now he relaxes and sits down. Camera holds. Now, where Foreman's head bad been in closeup, we see #2 in medium shot, sitting in sideline chair. He gets up and camera pans with him to his seat at the table.

Camera pans down table from #2. #3, #4, #5 are seated. #6 is hanging his coat on the coat rack. #7 is draping over the chair. #6 still stares out the window. #9 is in bathroom. #10 is walking toward his seat, mopping his brow. #11, #12 are seated.

#12
(to #11)
What was your impression of the prosecuting attorney?

#11 looks at him.

#11
(German accent)
I beg pardon?

#12

(I thought he was really sharp. I mean the way he hammered home his points, one by one, in logical sequence. It takes a good brain to do that, I was very impressed...)

MEDIUM SHOT - FOREMAN'S END OF TABLE

From side, shooting towards window. #8 stares out window, thinking.

#11
(to #12)
Yes, I think he did an expert job.

#12
I mean, he had a lot of drive too. Real drive.

#7
(calling, off)
Okay, let's get this show on the road.

FOREMAN
(standing, to #8)
How about sitting down.

CLOSE UP - #8

#8 doesn't hear the Foreman. He stares out window.

FOREMAN
The gentlemen at the window.

#8 turns, startled.

FOREMAN
How about sitting down.

#8
Oh. I'm sorry.

MEDIUM SHOT - CENTERING ON #11

#8 heads for a seat.

#10
(across table to #4)
It's pretty tough to figure, isn't it? A kid kills his father. Bing! Just like that.

#12
(butting in)
Well, if you analyze the figures...

#10
(ploughing ahead)
It's the element. I'm tellin' you they let those kids run wild up there. Well, maybe it serves 'em right. Know what I mean?

This is an annoying characteristic of #10's, this forcing an answer with "know what I mean?", as if he is saying "listen, you better answer me, because I'm somebody, see?" #4 reacts by looking squarely at #10, nodding and turning back to his paper. #8 has sat down quietly by this time. #11 has looked curiously from #10 to #12 during this exchange.

CLOSE UP - FOREMAN

FOREMAN
Is everybody here?

MEDIUM SHOT - #'S 4, 5, 6, 7

#6
(gesturing towards bathroom)
The old man's inside.

FOREMAN
Would you knock on the door.

#6 gets up and starts for the bathroom, camera panning with him.

#7
(To #5 as #6 goes by)
Hey, you a Yankee fan?

#5
No. Baltimore.

#7
Baltimore! Oh, the suffering! That's like being hit in the head with a crowbar once a day! Listen, who they got...

Camera has stayed with #6. He reaches the bathroom door and is about to knock when #9 opens the door.

#6
(apologetically)

I was just coming to get you.

#7
(off)
I'm asking you, who they got besides great groundskeepers?

FOREMAN
(off)
We'd like to get started.

#9
Forgive me gentlemen. I didn't mean to keep you waiting.

He begins to walk toward his seat as does #6.

#7
(off)
Baltimore!

CLOSE UP - FOREMAN

He is still standing. He locks around. This is the moment for his big speech.

FOREMAN
(Nervously)
All right. Now you gentlemen can handle this any way you want to. I mean, I'm net going to make any rules. If we want to discuss it first and then vote, that's one way. Or we can vote right now to see how we stand.

He pauses and looks around.

FOREMAN
Well... that's all I have to say.

MEDIUM SHOT - CENTERED ON #4

#4
I think it's customary to take a preliminary vote.

#7
(off)
Yeah, let's vote. Who knows, maybe we can all go home.

LONG SHOT - CENTERED ON FOREMAN

From opposite end of the table.

FOREMAN
It’s up to you. Just let’s remember we’ve got a first degree murder charge here. If we vote guilty we send the accused to the electric chair. That's mandatory.

#4
I think we all know that.

#3
Come on, let’s vote.

#10
Yeah. Let's see who’s where.

FOREMAN
Anybody doesn’t want to vote?

He looks around the table. There is no answer.

FOREMAN
All right. This has to be a twelve-to-nothing vote either way. That's the law. Okay, are we ready? All those voting guilty raise your hands.

Seven or eight hands go up immediately. Several others go up more slowly. Everyone looks around, the table as the Foreman begins to count hands. #9's hand goes up now, and all hands are raised, save #8's.

FOREMAN
...nine... ten... eleven. That's eleven for guilty. Okay, Not guilty.

CLOSE UP - #8

He slowly raises his hand.

FOREMAN
One. Right. Okay, eleven to one, guilty. Now we know where we are.

#8 lowers his hand.

#10
(off)
Boy-oh-boy. There’s always one.

#8 doesn't look in his direction.

#7
So what do we do now?

#8
Weil, I guess we talk.

#10
Boy-oh-boy.

CLOSE UP - #3

#3
(Leaning across to #8)
Well look, do you really think he's innocent?

CLOSE UP - #8

#8
I don't know.

CLOSE UP - #3

#3
(smiling)
I mean let's be reasonable. You sat right in court and heard the same things we did. The man's a dangerous killer. You could see it.

CLOSE UP - #8

#8
He's nineteen years old.

CLOSE UP - #3

#3
Well, that's old enough. He knifed his own father. Four inches into the chest.

MEDIUM SHOT - CENTERING ON #6

#6
(to #8)
It's pretty obvious. I mean, I was convinced from the first day.

CLOSE UP - #3

#3

Well, who wasn't?
(to #8)
I really think this is one of those open and shut things. They proved it a dozen different ways. Would you like me to list them for you?

CLOSE UP - #8

#8
No.

#10
(off, annoyed)
Then what do you want?

#8
Nothing. I just want to talk.

MEDIUM SHOT - #'S 7, 8, 9, 10.

#7
Well what's there to talk about? Eleven men in here agree. Nobody had to think about it twice, except you.

#10
(leaning over toward #8)
I want to ask you something. Do you believe his story?

#8
I don't know whether I believe it or not. Maybe I don't.

#7
So what'd you vote not guilty for?

#8
There were eleven votes for guilty. It's not so easy for me to raise my hand and send a boy off to die with-out talking about it first.

#7
Who says it's easy for me?

#8
(turning)
No one.

CLOSE UP - #7, #8 FROM ANOTHER ANGLE

#7
What, just because I voted fast? I think the guy's guilty. You couldn’t change my mind if you talked for a hundred years.

#8
I'm not trying to change your mind. It's just that we're talking about somebody's life here. I mean, we can't decide in five minutes. Sup-posing we're wrong?

There is a pause. #7 looks at #8.

#7
Supposing we're wrong! Supposing this whole building fell on my head. You can suppose anything.

#8
That's right.

#7
What's the difference how long it takes? We honestly think he's guilty. So supposing we finish in five minutes? So what?

#8
Let's take an hour. The ball game doesn’t start till eight o'clock.

#7 looks angrily at him for a moment, and the suddenly breaks into a smile as if to say, "What am I beating myself up over you for?" #7 makes the curve ball motion with his hand again.

#7
(smiling)
Shhhoom!

He settles hack in his chair, smiling.

L0NG SHOT - TABLE FROM #7’S ANGLE CENTERED OT FOREMAN

Bo one says a word for a moment.

FOREMAN
(hesitantly)
Well who's got something to say?

He looks at #2. #2 shrugs.

#2

Not me.

Foreman looks around the table. Some of them shrug, others merely sit. He looks at #9.

#9
I'm willing to sit for an hour.

#10
Great.
(a pause)
I heard a pretty good story last night...

#8
(sharply)
That’s not what we’re sitting here for.

MEDIUM SHOT - CENTERED ON #9

#10 and #8 speak across #9, who turns from one to another. Camera shoots over shoulders of #'s 4 and 5.

#10
All right, then you tell me. What are we sitting here for?

#8 looks at him, trying to phrase the following. They wait.

#8
Maybe for no reason. I don't know. Look, this boy's been kicked around all his life. You know, living in a slum, his mother dead since he was nine. He spent a year and a half in an orphanage while his father served a jail term for forgery. That's not a very good headstart. He's a wild, angry kid and that's all he's ever been. You know why he got that way? Because he was knocked on the head by somebody once a day, every day. He's had a pretty terrible nineteen years. I think maybe we owe him a few words. That's all.

He looks around the table. #9 nods slowly.

#10

I don’t mind telling you this,
mister. We don't owe him a thing.
He got a fair trial, didn't he?
What d'you think that trial cost?
He's lucky he got it.
(turning to #11)
Know what I mean?
(Now looking across table
at #’s 3, 4, 5)
Look, we're all grown-ups in here.
We heard the facts, didn't we?
(to #8)
Now you're not going to tell us
that we're supposed to believe that
kid, knowing what he is. Listen,
I've lived among 'em all my life.
You can't believe a word they say.
You know that.
(to all)
I mean they're born liars.

There is a pause.

#9
(slowly)
Only an ignorant man can believe
that.

#10
Now listen...

#9
(to #10)
Do you think you were born with a
monopoly on the truth?
(to all)
I think certain things should be
pointed out to this man.

CLOSE UP - #3

He is annoyed at this argument.

#3
All right. It’s not Sunday. We
don’t need a sermon in here.

MEDIUM SHOT - #’S 8, 9, 10

#9
(to all)
What he says is very dangerous...

#10

(loudly)
All right, that's enough!

He glares at #9. #9 half rises, but then feels #8's hand firmly on his arm, gently pulling him down. He sits down, turns away from #10 and looks briefly at #8. #8 looks calmly, firmly back, and in his look there is understanding and sympathy.

#4
(off)
I don't see any need for arguing like this. I think we ought to be able to behave like gentlemen.

#12
Right!

MEDIUM SHOT - #'S 4, 3, 2, FOREMAN

#4
(calmly)
If we're going to discuss this case let's discuss the facts.

FOREMAN
I think that's a good point. We have a job to do. Let's do it.

#2 rises and walks around end of table. Camera pans with him till it reaches #'11 and 12. Foreman is still on camera. #2 goes off to his jacket to get a package of cough drops, and returns during the next lines. #12 doodies steadily on his pad. #11 watches him. He draws a cereal box.

FOREMAN
Maybe if the gentleman who's disagreeing down there could tell us why. You know, tell us what he thinks, we could show him where he's probably mixed up.

#12 looks at #11 and sees him watching his doodling. He holds up his drawing for him to see.

#12
(to #11 confidentially)
Rice Pops. It's one of the products I work on at the agency. "The Break-fast With The Built-In Bounce". I wrote that line.

#11 smiles in spite of himself.

#11
It's very catchy.

FOREMAN
(annoyed, to #12)
If you don't mind.

#12
I'm sorry. I have this habit of doodling. It keeps me thinking clearly.

FOREMAN
We're trying to get someplace here. Y'know we can sit hare forever...

#12
Well look, maybe this is an idea. I'm just thinking out loud, but it seems to me it's up to us to convince this gentleman
(indicating #8)
that we're right and he's wrong. Maybe if we each took a minute or two. Mind you, this is just a quick idea...

FOREMAN
No, I think it's a good one. Sup-posing we go once around the table.

CLOSE UP - #7

#7
Anything. Let's start it off.

FOREMAN
(To #7)
Okay. How about you going first?

#7
Not me. I think we oughta go in order.

He takes his gum out of his mouth and looks for a place to throw it. Finally he lets fly. We hear a thin clank. He seems satisfied.

MEDIUM SHOT - FOREMAN, #2, #3

FOREMAN
That sounds all right. In order, a coupla minutes apiece.
(To #2)

I guess you're first.

#2
Oh. Well...
(he pauses nervously)
Well it's hard to put into words. I just... think he's guilty. I thought it was obvious from the word go. I mean nobody proved otherwise.

CLOSE UP - #8

#8
(quietly)
Nobody has to prove otherwise. The burden of proof is on the prosecution. The defendant doesn't have to open his mouth. That's in the Constitution. You've heard of it.

CLOSE UP - #2

#2
(flustered)
Well sure I've heard of it. I know what it is. I... what I meant... well the man is guilty. I mean some-body saw him do it...

He looks around helplessly, and then looks down. Camera pans over to #3 who has been watching #2, waiting his turn. #2, now in close up, turns to the others.

#3

Okay. Now here's what I think, and I have no personal feelings about this. I'm talking about facts. Number one: let's take the old man who lived on the second floor right underneath the room where the murder took place. At ten minutes after twelve on the night of the killing he heard loud noises in the apartment upstairs. He said it sounded like a fight. Then he heard the kid shout out, "I'm gonna kill you." A second later he heard a body fall, and he ran to the door of his apartment, looked out, and saw the kid running down the stairs and out of the house. Then he called the police. They found the father with a knife in his chest...

MEDIUM SHOT - CENTERED ON FOREMAN

FOREMAN
And the coroner fired the time of death at around midnight.

MEDIUM SHOT - OVER #3'S SHOULDER TOWARD #8

#3
Right. I mean there are facts for you. You can't refute facts. This boy is guilty. I'm telling you. Look, I'm as sentimental as the next guy. I know the kid is only nineteen, but he's still got to pay for what he did.

#7
(off)
I'm with you.

FOREMAN
All right. Next.

MEDIUM SHOT - CENTERING ON #4

#'s 3 and 5 listen closely to this quiet, imposing, meticulous man. He takes off his eyeglasses, waving them as he talks.

#4

It was obvious, to me anyway, that the boy's entire story was flimsy. He claimed he was at the movies during the time of the killing and yet one hour later he couldn't remember what films he saw, or who played in them.

#3
That's right. Did you hear that?
(to #4)
You're absolutely right.

#4
No one saw him going in or out of the theatre...

CLOSE UP - #10 AND PART OF #11

#10
Listen, what about that woman across the street? If her testimony don't prove it, nothing does.

#11
That's right. She was the one who actually saw the killing.

CLOSE UP - FOREMAN

FOREMAN
Let's go in order here.

MEDIUM SHOT - CENTERED ON #10

#10 rises, handkerchief in hand.

#10
Just a minute. Here's a woman...

He blows his nose.

#10
Here's a woman who's lying in bed and can't sleep.

He begins to walk around the table, wiping tender nose and talking. Camera follows him around the table.

#10

She's dying with the heat. Know what I mean? Anyway, she looks out the window and right across the street she sees the kid stick the knife into his father. The time is 12:10 on the nose. Everything fits. Look, she's known the kid all his life. His window is right opposite hers, across the el tracks, and she swore she saw him do it.

#10 is now standing behind #6 and lookin across table at #8. Camera shoots over #8's shoulder. #10 wipes his nose.

#8
Through the windows of a passing elevated train.

#10
(through the handkerchief)
Right. This el train had no passengers on it. It was just being moved downtown. The lights were out, remember? And they proved in court that at night you can look through the windows of an el train when the lights are out and see what's happening on the other side. They proved it!

CLOSE UP - #8

#8
(to #10)
I'd like to ask you something. You don't believe the boy. How come you believe the woman? She's one of "them" too, isn't she?

CLOSE UP - #10

He is suddenly angry.

#10
You're a pretty smart fellow, aren't you?

He takes a step towards #8.

FAST CLOSE UP - #8

Sitting calmly there.

LONG SHOT - ENTIRE TABLE FROM BEHIND FOREMAN

FOREMAN
(nervously)
Hey, let's take it easy.

MEDIUM SHOT #'S 3, 5, and 10 STANDING BEHIND #7

#'s 3 and 5 have reached #10 who looks angrily at #8. #3 takes #10's arm.

#10
(angrily)
What's he so wise about? I'm telling you...

#3
(strongly)
Come on. Sit down.

He begins to lead #10 back to his seat, camera panning with them.

#3
What are you letting him get you all upset for? Relax.

FOREMAN
(Off)
Let's calm down now. I mean we're not gonna get anywhere fighting.

#'s 3 and 10 reach #10's seat. #10 sits down. #3 remains standing now. Until his next lines he walks around the room, takes a drink at the fountain, etc.

MEDIUM SHOT - CENTERED ON FOREMAN

He is standing.

FOREMAN
Okay. Let's try to keep it peaceful in here.

He looks down the table.

FOREMAN
Whose turn is it?

#12
(pointing at #5, who is off camera)
His.

FOREMAN
Okay. You've got two minutes.

CLOSE UP - #5

He looks around nervously.

#5
I'll pass it.

FOREMAN
(off)
That's your privilege. How about the next gentleman?

Camera pans to close up of #6.

#6
I don't know. I started to be con-inced, uh... you know, very early in the case. Well, I was looking for the motive. That's very important. If there's no motive where's the case? So anyway, that testimony from those people across the hall from the kid's apartment, that was very powerful. Didn't they say something about an argument between the father and the boy around seven o'clock that night? I mean, I can be wrong.

MEDIUM SHOT - #11, #10, #9, #8 FROM ACROSS TABLE

#11
It was eight o'clock. Not seven.

#8
That's right. Eight o'clock. They heard an argument, but they couldn't hear what it was about. Then they heard the father hit the boy twice, and finally they saw the boy walk angrily out of the house. What does that prove?

CLOSE UP - #6

Any time he is working on his own ideas he feels himself on un steady ground, and is ready to back down. He does so now.

#6

Well, it doesn't exactly prove anything. It's just part of the picture. I didn't say it proved anything.

MEDIUM SHOT - CENTERING ON #'S 6, 7, 8

#8
You said it revealed a motive for the killing. The prosecuting attorney said the same thing. Well, I don't think it's a very strong motive. This boy has been hit so many times in his life that violence is practically a normal state of affairs for him. I can't see two slaps in the face provoking him into committing murder.

#4
(quietly)
It may have been two slaps too many. Everyone has a breaking point.

FOREMAN
(to the #6)
Anything else?

#6
No.

FOREMAN
Okay.
(to the #7)
How about the next gentleman?

#7
Me?
(he pauses, looks around, shrugs)
I don't know, it's practically all said already. We can talk about it forever. It's the same thing.

CLOSE UP - #7 WITH #8 AT RIGHT SIDE OF FRAME

#7

I mean this kid is five for oh. Look at his record. He was in children's court when he was ten for throwing a rock at his teacher. At fifteen he was in reform school. He stole a car. He's been arrested for mugging. He was picked up twice for knife- fighting. He's real swift with a knife, they said. This is a very fine boy.

#8
Ever since he was five years old his father beat him up regularly. He used his fists.

#7
(indignantly)
So would I! A kid like that.

Camera dollies back now to show #3 walking over from the water fountain toward #7. He stands behind #7, talks to #8.

#3
And how. It's the kids, the way they are nowadays. Listen, when I was his age I used to call my father "sir". That’s right. Sir! You ever hear a boy call his father that anymore?

#8
Fathers don't seem to think it's important any more.

#3
No? Have you got any kids?

#8
Three.

#3

Yeah, well I've got one, a boy twenty-two years old. I'll tell you about him. When he was nine he ran away from a fight. I saw him. I was so ashamed I almost threw up. So I told him right out. I'm gonna make a man outa you or I'm gonna bust you in half trying. Well, I made a man outa him all right. When he was sixteen we had a battle. He hit me in the face! He's big, y'know. I haven't seen him in two years. Rotten kid. You work your heart out...

He stops. He has said more than he intended and more passionately than he intended it. He is embarrassed. He looks at #6, and then at all of them.

#3
(loud)
All right. Let's get on with it.

He turns and walks angrily around the table to his seat, camera panning with him. He sits down. Camera now covers #'s 3, 4, 5. #4 looks at #3 and then across the table.

#4
I think we're missing the point here. This boy, let's say he's a product of a filthy neighborhood and a broken home. We can't help that. We're here to decide whether he's guilty or innocent, not to go into the reasons why he grew up this way. He was born in a slum. Slums are breeding grounds for criminals. I know it. So do you.

CLOSE UP - #5

He reacts to the following.

#4
It's no secret. Children from slum background are potential menaces to society. Now, I think...

#10
(interrupting)
Brother you can say that again. The kids who crawl outa those places are real trash. I don't want any part of them, I'm telling you.

Camera pans over to close up of #5. His face is angry. He tries to control himself. His voice shakes.

#5
I've lived in a slum all my life....

CLOSE UP - #10

He knows he has said the wrong thing.

#10
Oh, now wait a second...

CLOSE UP - #5

#5
(Furious)
I used to play in a back yard that was filled with garbage. Maybe it still smells on me.

CLOSE UP - #10

#10
(beginning to anger)
Now listen, sonny...

LONG SHOT - ENTIRE TABLE OVER FOREMAN'S SHOULDER

Foreman has risen.

FOREMAN
(#5)
Now let's be reasonable. There's nothing personal...

#5 shoots to his feet.

#5
(loud)
There is something personal!

He looks around at the others, all looking at him. Then, suddenly he has nothing to say. He sits down, fists clenched.

#3
Come on now. He didn't mean you, feller. Let's not be so sensitive.

MEDIUM SHOT - #'S 11, 12, FOREMAN SHOOTING OVER #'S 3, 4

#11
(softly)

This sensitivity I can understand.

The Foreman Looks at #11, and his face shows distaste for him in spite of himself. #12 gets up and walks to the window.

FOREMAN
All right, let’s stop all this arguing. We're wasting time here.
(pointing to #8)
It's your turn. Let’s go.

MEDIUM SHOT - #'S 8, 9, 10.

#8
Well, I didn't expect a turn. I thought you were all supposed to be convincing me. Wasn’t that the idea?

#12
Check. That was the idea.

CLOSE-UP - FOREMAN

FOREMAN
I forgot about that. He’s right.

CLOSE-UP - #10

#10
(annoyed, with #12)
Well, what's the difference! He's the one who's keeping us in here. Let’s hear what he’s got to say.

MEDIUM SHOT - #‘S 10, 11, 12, FOREMAN

FOREMAN
Now just a second. We decided to do it a certain way. Let’s stick to what we said.

#10
(disgusted)
Ah stop bein’ a kid, will'ya!

FOREMAN
A kid! Listen, what d'you mean by that?

#10
What d’ya think I mean? K-I-D, Kid!

FOREMAN

What, just because I'm trying to keep this thing organized? Listen...

He gets up.

FOREMAN
You want to do it? Here. You sit here. You take the responsibility. I'll just shut up, that's all.

#10
Listen, what are you gettin' so hot about? Calm down, willya.

FOREMAN
Don't tell me to calm down! Here! Here's the chair.
(gesturing toward his empty chair)
You keep it goin' smooth and everything. What d'ya think it's a snap? Come on, Mr. Foreman. Let's see bow great you'd run the show.

#10 turns to #11.

#10
(griming helplessly)
Did y'ever see such a thing?

FOREMAN
(Loud)
You think it's funny or something?

#12 walks over to him from the window.

#12
Take it easy. The whole thing's unimportant.

CLOSE UP - FOREMAN

He glares up at #12.

FOREMAN
Unimportant? You want to try it?

#12
No. Listen, you're doing a beautiful job. Nobody wants to change.

The Foreman turns away from #12 and looks at the rest of the jury.

He is embarrassed now. For a moment he tries to of something to say. Then, abruptly he sits down. Camera holds on him. He looks down at the table.

MEDIUM SHOT - #'S 8, 9, 10

They all look in direction of Foreman. There is a pause. Then:

#10
All right. Let's hear from somebody.

There is another pause.

#8
Well, it's all right with me if you want me to tell you how I feel about it right now.

CLOSE UP - FOREMAN

He looks down at table.

FOREMAN
(softly)
I don't care what you do.

MEDIUM SHOT - #'S 8, 9, 10

#8 waits for a moment, and then begins. As he speaks, #12 walks into shot, stands behind #9.

#8
(after a pause)
All right. I haven't got anything brilliant. I only know as much as you do. According to the testimony the boy looks guilty. Maybe he is. I sat there in court for three days listening while the evidence built up. Everybody sounded so positive that I started to get a peculiar feeling about this trial. I mean, nothing is that positive. I had questions I would have liked to ask. Maybe they wouldn't have meant anything. I don't know. But I started to feel the defense counsel wasn't doing his job. He let too many things go. Little things.

#10
What little things? Listen, when these guys don't ask questions, that's because they know the answers already and they figure they'll be hurt.

#8
Maybe. It's also possible for a lawyer to be just plain stupid, isn't it?

#6
You sound like you've met my brother-in-law.

A few jurors laugh.

#8
(smiling)
I kept putting myself in the boy's place. I would have asked for another lawyer, I think. I mean, if I wan on trial for my life I'd want my lawyer to tear the prosecution witnesses to shreds, or at least to try. Look, there was one alleged, eye-witness to this killing. Someone else claims he heard, the killing and then saw the boy running out afterward. There was a lot of circumstantial evidence, but actually those two witnesses were the entire case for the prosecution. We're dealing with a human life here. Supposing they were wrong?

CLOSE UP - #12

He stands behind #8 and looks down at him.

#12
What do you mean supposing they were wrong? What's the point of having witnesses at all?

MEDIUM SHOT - #'S 8, 9, 12

#12 stands behind #8. #8 is turned to look up at him. #9 listens carefully.

#8
Could they be wrong?

#12
They sat on the stand oath. What are you trying to say?

#8
They're only people. People make mistakes. Could they be wrong?

#12
I... No! I don’t think so!

#6
Do you know so?

#12
Well now listen, nobody can know a thing like that. This isn't an exact science...

CLOSE UP - #8

As he turns away from #12, satisfied.

#8
(quietly)
That's right. It isn't.

LONG SHOT - ENTIRE TABLE FROM BEHIND #7

There is silence for a moment. #12 walks back to his seat. #3 gets up angrily and strides down to a position behind #5.

#3
(to #8)
All right. Let's try to get to the point here. What about the switch-knife they found in the father's chest?

CLOSE UP - #2

#2
(nervously)
Well, wait a minute. I think we oughta... There are people who haven't talked yet. Shouldn’t we...

MEDIUM SHOT - #3 STANDING BEHIND #5

#3
(to #2)
Look, they can talk whenever they like. Now just be quiet a second, will'ya please.

FLASH CLOSE UP - #2

Wounded at being slapped down by #3, he looks down at table.

MEDIUM SHOT #'S 3, 5, 6, 7 SHOOTING OVER #8'S SHOULDER

#3
(to #8)
Okay what about the knife? You know, the one that fine upright boy admitted buying on the night of the murder. Let's talk about that.

MEDIUM SHOT #'S 7, 8, 9 - SHOOTING OVER #3'S SHOULDER

#8 appears just a bit pleased at this turn of conversation.

#8
All right. Let's talk about it. Let's get it in here and look at it. I'd like to see it again.
(he turns toward Foreman)
Mr. Foreman?

MEDIUM SHOT - CENTERED OH FOREMAN

He looks at #8 for a moment.

Then he gets up and moves to the door, camera panning with him.

#3
(off)
We all know what it looks like. I don't see why we have to look at it again.

The Foreman knocks on the door. The door opens and the guard, pokes his head into the room.

MEDIUM SHOT - #'S 3, 4, 5

#3 still stands behind #5. He looks at door where Foreman stands whispering to the guard. Then #3 turns to table.

#3
What are we gonna get out of seeing the knife again?

#5
(locking up)
You brought it up.

#3

(giving him a look and then turning to #4)
What do you think?

#4
The gentleman has a right to see exhibits in evidence.

#3 shrugs and turns away.

#4
(across to #8)
The knife, and the way it was bought, is pretty strong evidence. Don't you think so?

CLOSE UP - #8

#8
I do.

MEDIUM SHOT - CENTERED ON #4, SHOOTING PAST #8'S PROFILE

#4
Good. Now supposing we take these facts one at a time. One. The boy admitted going out of his house at 6 o'clock on the night of the murder after being punched several times by his father.

#8
He didn't say punched. He said hit. There's a difference between a slap and a punch.

#4
(doggedly)
After being hit several times by his father. Two. The boy went directly to a neighborhood junk shop where he bought a... what do you call these things...

#3
Switch-knives.

#4
A switch-blade knife.
(to #3)
Thanks.

#4

Three. This wasn't what you'd call an ordinary knife. It had a very unusual carved handle. Four. The storekeeper who sold it to him identified it and said it was the only one of its kind he had ever had in stock. Five. At oh, about 8:45 the boy ran into some friends of his in front of a tavern. Am I correct so far?

#8
Yes, you are.

#3
(to #8)
You bet he is.
(to all)
Now listen to this man. He knows what he's talking about.

#4
The boy talked, with his friends for about an hour, leaving them at about 9:45. During this time they saw the switch knife. Six. Each of them identified the death-weapon in court as that same knife. Seven. The boy arrived home at about 10 o'clock. Now this is where the stories offered by the boy and the state begin to diverge slightly.

CLOSE UP - #8

He listens quietly, patiently, waiting his turn.

#4
He claims that he stayed home until 11:30 and then went to one of those all-night movies. He returned home at about 3:15 in the morning to find his father dead and himself arrested.

MEDIUM SHOT - CENTERED ON #4

#4

Now, what happened to the switch-knife? This is the charming and imaginative little fable the boy invented. He claims that the knife fell through a hole in his pocket sometime between 11:30 and 3:15 while he was on his trip to the movies, and that he never saw it again. Now there is a tale, gentlemen. I think it’s quite clear that the boy never went to the movies that night. No one in the house saw him go out at 11:30. No one at the theatre identified him. He couldn’t even remember the names of the pictures he saw. What actually happened is this. The boy stayed home, had another fight with his father, stabbed him to death with the knife at ten minutes after twelve and fled from the house. He even remembered to wipe the knife clean of fingerprints.

MEDIUM SHOT - THE DOOR

It opens. The guard enters carrying a curiously designed knife with a tag hanging from it. #4 walks into the shot and takes the knife from the guard. He turns and moves back to his seat as the guard exits. He stands behind his seat holding the knife. Camera is now at an angle which includes #'s 4, 5, 8, 9.

#4
(leaning over to #8)
Everyone connected with the case identified this knife. Now are you trying to tell me that it really fell through a hole in the boy's pocket and that someone picked it up off the street, went to the boy’s house and stabbed his father with it just to be amusing.

#8
No. I'm saying that it’s possible that the boy lost the knife, and that someone else stabbed his father with a similar knife. It's possible.

CLOSE UP - #4

He flicks open the blade of the knife and jams it into the table. Camera dollies hack to show knife in table. Jurors #2, 5, 10, 11, 12 get up and crowd around-to get a better look at it.

#4
Tale a look at that knife, it's a very unusual knife. I've never seen one like it. Neither had the storekeeper who sold it to the boy. Aren't you trying to make us accept a pretty incredible coincidence?

CLOSE UP - #6

#6
I'm not trying to make anyone accept it. I'm just saying that it's possible.

CLOSE UP - #3

Standing next to #4, is suddenly infuriated at #6's calmness. He leans forward.

#3
(shouting)
And I'm saying it's not possible.

CLOSE UP - #6

He stands for a moment in the silence. Then he reaches into his pocket and swiftly withdraws a knife. He holds it in front of his face, and flicks open the blade. Than he leans forward and sticks the knife into the table next to the other.

BIG CLOSE UP - THE TWO ORNATELY CARVED KNIVES

Stuck into the table, side by side, each exactly alike. There is an immediate burst of sound in the room.

#7
What is this?

#12
Where'd that come from?

#6
What is it?

#2
How d'you like that!

MEDIUM SHOT - THE JURORS, CLUSTERED AROUND KNIVES

#6 is standing away from the table, watching. #3 looks up at him.

#3
(amazed)
What are you trying to do?

#10
(loud)
Yeah! What's going on here? Who do you think you are?

CLOSE UP - #6

In the group of faces. He has taken the knife out of the table and is holding it.

#6
Look at it. It's the same knife!

CLOSE UP - #6

Watching them closely, a few steps back from the group. The ad lib hubbub still goes on.

#4
Quiet! Let's be quiet!

The noise begins to subside.

MEDIUM SHOT - CENTERED ON #4

He takes the knife from #5's hand and speaks to #3, who stands at left of frame.

#4
Where'd you get it?

#6
I was walking for a couple of hours last night, just thinking. I walked through the boy's neighborhood. The knife comes from a little pawnshop three bleaks from his house. It cost two dollars.

#4
It's against the law to buy or sell switch-blade knives.

#6
That's right. I broke the law.

#3 pushes in next to #4. He is much too angry for the situation. Others look at him peculiarly as he speaks.

#3
Listen, you pulled, a real bright trick here. Now supposing you tell me what you proved. Maybe there are ten knives like that. So what?

CLOSE UP - #8

#8
Maybe there are.

MEDIUM SHOT - #'S 3, 4, 7, 11, 5.

#3 is silent for a minute. He knows that a tiny dent has been made in the case. He splutters.

#3
So what does that mean? What do you think it is? It's the same kind, of knife. So what's that? The discovery of the age, or something?

#11
(quietly)
This does not change the fact that it would be still an incredible coincidence for another person to have made the stabbing with the same of knife.

#3
That's right! He's right.

#7
The odds are a million to one.

CLOSE UP - #8

#8
It's possible.

CLOSE UP - #4

#4 looks calmly at #8, and speaks quietly.

#4
But not very probable.

FOREMAN
Listen, let's take seats. There's no point in milling around here.

They begin to move back to their seats. The 8th Juror stands watching.

#2
It's interesting that he'd find a knife exactly like the one the boy bought.

#3
What's interesting? You think it proves anything?

#2
Well, no. I was just...

#3
Interesting!
(he point at the #8)
Listen, how come the kid bought the knife to begin with?

#8
Well, he claims that...

#3
I know. He bought it as a present for a friend of his. He was gonna give it to him the next day, because he busted the other kid's knife dropping it on the pavement.

#8
That's what he said.

#7
(off)
Beloney!

#9
The friend testified that the boy did break his knife.

#3
Yeah. And how long before the killing? Three weeks, right? So how come our noble lad bought this knife one half hour after his father snacked him, and three and a half hours before they found it shoved up to here in the father's chest?

CLOSE UP - #7

#7
(grinning)
Well, he was gonna give the knife to his friend. He just wanted to use it for a minute.

There is scattered laughter.

MEDIUM SHOT - #8, BEHIND #9

#8 waits until the laughter dies down.

#8
(to the #3)
Let me ask you this. It's one of the questions I wanted to ask in court. If the boy bought the knife to use on his father, how come he showed what was going to be the murder weapon to three friends of his just a couple of hours before the killing?

#3
Listen, all of this is just talk. The boy lied and you know it.

#8
He may have lied.
(to #10)
Do you think he lied?

#10
Now that's a stupid question. Sure he lied.

MEDIUM SHOT - #'s 8, 10, 11, SHOOTING BETWEEN #'S 4 AND 5

#8
(to #4)
Do you?

#4
You don't have to ask me that. You know my answer. He lied...

#8
(to #5)
Do you think he lied?

CLOSE UP - #5

He can’t answer immediately. He looks around nervously.

#5
Well... I don't know...

MEDIUM SHOT - #3, STANDING

#3
Now wait a second!

He starts to stride around table pest #'s 4, 5, 6.

#3
What are you, the kid's lawyer or something? Who do you think you are to start cross-examining us? Listen, there are still eleven of us in here who think he’s guilty.

#3 is standing behind #7 now.

#7
Right! What do you think you’re gonna accomplish? You’re not gonna change anybody's mind. So if you want to be stubborn and hang this jury go ahead. The kid'll be tried again and found guilty sure as he's born.

MEDIUM SHOT - #8

Camera pans with him as he walks back to his seat. He stands behind it. #'s 3, 7, 9 are included, #3 standing behind #7's seat.

#8
You're probably right.

#7
So what are you gonna do about it? We can be here all night.

#9
It's only one night. A boy may die.

#7 glares at #9, but has no answer. #8 sits down.

#7
Brother! Anybody got a deck of cards?

There is silence. #3 starts a walk over to the coat rack to get some cigarettes from his jacket. Camera holds centered on #8 for a moment. The room is quiet.

MEDIUM SHOT - CENTERED ON #2, SHOOTING 0VER #10 AND #11

#2
(to Foreman)
I don't think he ought to joke about it.

FOREMAN
(annoyed)
What do you want me to do?

#2 would like to say something to #7, but daren't. #10 slams his hand down on the table.

#10
Listen, I don't see what all this stuff about the knife has to do with anything. Somebody saw the kid stab his father. What more do we need? You guys can talk the ears right off my head. Know what I mean? I got three garages of mine going to pot while you're talking! Let's get done and get outa here!

#11
The knife was very important to the district attorney. He spent one whole morning...

#10
He's a fifteen assistant or something. What does he know?

FOREMAN
Okay. I think we oughta get on with it now. These side arguments only slow us up.
(to the #8)
What about it?

#6
(to the #8)
You're the only one.

#8

I have a proposition to make all of you. I want to call for a vote. I'd like you eleven men to vote by secret written ballot. I'll abstain. If there are still eleven votes for guilty, I won't stand alone. We'll take a guilty verdict in to the judge right now. But if anyone votes not guilty, we'll stay and talk this thing out.
(he pauses)
Well, that's all. If you want to try it, I'm ready.

#3
Well, finally you're behaving like a reasonable man.

#12
Check. I'll buy that.

#7
Okay. Let's do it.

FOREMAN
That sounds fair.

Some of the Jurors nod. The #8 moves to the window.

FOREMAN
Anyone doesn't agree? Okay. Pass these along.

CLOSE UP - #8

Watching, waiting.

LONG SHOT - ENTIRE JURY, FROM ABOVE

Writing. Now some of them begin to fold up their slips, and pass them back to the Foreman. As the passing back begins, camera be gins to move down, centering on entire jury. By the time all the slips are back the camera is shooting over shoulder of Foreman. He stacks the slips on the table next to him. Then he looks over at #8.

CLOSE UP - #8

Looking back at Foreman, waiting.

CLOSE UP - FOREMAN

He looks from #8 down to table. He picks up the first slip, opens it, and reads.

FOREMAN
Guilty.

The Foreman opens another slip and reads it.

FOREMAN
Guilty.

CLOSE UP - #2

And now camera begins a long slow pan around the table, catching a close up of each face as the reads off the slips.

No one moves. Each man waits tensely.

FOREMAN
Guilty.
(a pause)
Guilty.
(a pause)
Guilty.
(a pause)
Guilty.
(a pause)
Guilty.
(a pause)
Guilty.
(a pause)
Guilty.
(a pause)

The camera is now on #10. He waits anxiously.

FOREMAN
Not guilty.

CLOSE UP - #8

He seems to relax a bit. He starts back for his seat.

MEDIUM SHOT - #'S 10, 11, 12, FOREMAN

The Foreman reads off the last ballot.

FOREMAN
Guilty.

#10
(angry)
Boy! How do you like that!

#7
(off)
And another chap flips his wig!

#10
All right, who was it? Come on, I want to know!

#11
(looking at #10)
Excuse me. This was a secret ballot. We agreed, on this point, no? If the gentleman wants it to remain secret...

MEDIUM SHOT - CENTERED ON #3

#3
Secret? What d'ya mean, secret? There are no secrets in a jury room! I know who it was!

He stands up and walks over to #5's seat, camera panning with him. #5 turns and looks at him. #3 stares down at #5.

#3
Brother, you're really something. You come in here and you vote guilty like everybody else, and then this golden-voiced preacher over here starts to tear your heart cut with stories about a poor little kid who just couldn't help becoming a murderer. So you change your vote. If that isn't the most sickening... Why dontcha drop a quarter in his collection box?

#5 listens to this, his face growing darker and angrier. Toward the conclusion of the speech he begins to rise to his feet, facing #3.

#5
Now wait a minute!

But #3 turns his back on him and starts to walk away. Camera holds on #5. Then he starts out after #3.

#5
(angry)
Who d'ya think you are to talk like...

#3 has his back to #5. #5 reaches out and takes his shoulder.

#5
Who d'ya you are...

#3 shakes him off angrily, and turns to face him. #4 is on his feet swiftly now, and slips in between them. He takes #5's arm.

#4
(calmly)
All right, let's calm down...

#5
Who does he think he is?

#4 leads #5 back to his seat, camera panning with him.

#5
I mean, did you see him?

#4
(softly)
Just sit down. He's very excitable. Forget it. It doesn't matter.

MEDIUM SHOT - #3 STANDING BEHIND #2

#3
Excitable! You bet I'm excitable. We're trying to put a guilty man into the chair where he belongs, and all of a sudden somebody's telling us fairy tales... and we're listening!

#2 leans back.

#2
(mildly)
Take it easy.

#3
What do you mean take it easy! D'you feel like seeing a proven murderer walking the streets? Why don't we give him his knife back? Make it easier for him!

He indicates #5 with a wave of his hand.

#3
Where does he have the right...

MEDIUM SHOT - #'S 10, 11, 12, FOREMAN

FOREMAN
Okay, let's stop the yelling.

#11
Please. I would like to say something here. I have always thought that a man was entitled to have unpopular opinions in this country. This is the reason I came here. In my own country, I am ashamed to say...

#10
What do we have to listen to now, the whole history of your country?

MEDIUM SHOT - #'S 5, 6, 7, 8.

#7
Yeah, let's stick to the subject.

He turns to #5.

#7
Now I'm talking facts. What made you change your vote?

MEDIUM CLOSE UP - #9, #8

#9 speaks softly. #8 watches him as if he had known all along.

#9
There's nothing for him to tell you. He didn't change his vote. I did.

CLOSE UP - #7

He reacts to this with obvious disgust.

MEDIUM CLOSE UP - #'S 7, 9

#9
(to #7)
Would you like me to tell you why?

CLOSE UP - #7

#7
(turning away)
No, I wouldn't like you to tell me why.

CLOSE UP - #9

#9

Well, I'd like to make it clear anyway, if you don't mind.

MEDIUM SHOT - FOREMAN, #12, #11, #10

#10
Do we have to listen to this?

FOREMAN
(tough, to #10)
The man wants to talk.

#10 looks angrily at him and then turns away. The Foreman looks proudly down at #9.

MEDIUM SHOT - #9, #8, #7

#9
(in Foreman's direction)
Thank you.
(to #7)
This gentleman
(indicating #8)
has been standing alone against us. He doesn't say the boy is not guilty. He just isn't sure. Well, it's not easy to stand alone against the ridicule of others, even when there's a worthy cause.

#7 raises his eyes to heaven, shakes his head in disgust, and gets up. He turns his back on #9 and heads for the men's room. #9 stands up and speaks spiritedly to his back.

#9
So he gambled for support, and I gave it to him. I respect his motives. The boy on trial is probably guilty. But I want to hear more. Right now the vote is ten to two.

The bathroom door slams shut. #9 takes one step toward it, furious at #7's arrogance.

#9
(shouting)
I'm talking here! You have no right to...

But he is stopped by #8's hand on his shoulder. He turns to #8.

#8

(gently)
He can't hear you. He never will.
Let's sit down.

#9 nods and slowly takes his seat, spent with his effort. #8 remains standing, looking down at him.

MEDIUM SHOT - FOREMAN, #2, #3

#3
Well if the speech is over, maybe we can go on.

FOREMAN
I think we ought to take a break. One man's inside there. Let's wait for him.

The Foreman stands up and camera pans with him as he walks around the table to where the two knives are stuck into table. He plucks the tagged one out, and closes it. #4 opens up his newspaper and begins to read it. #3 gets up and, standing behind his chair, stretches. We hear murmured ad lib conversations, and the sound of several other jurors getting up.

The Foreman goes to the door, camera holding on him. He knocks. The door opens and the guard pokes his head in. The Foreman hands him the knife. The guard closes the door.

Foreman walks back to his seat camera dollying back with him.

In back ground, #3 stands near door, thinking. He watches #5, and while we hear following dialogue between #'s 11 and 12, #3 watches as #5 gets up, crosses in front of him, and goes to far end of room, #3 obviously wants the right opportunity to talk with him alone.

#12
Looks like we're really hung up here. I mean that thing with the old man was pretty unexpected.

#11 nods and shrugs.

#12
I wish I knew how we could break this up.
(suddenly smiling)
Y'know in advertising... I told you I worked at an agency, didn’t I?
(#11 nods)

Well there are some pretty strange people... not strange really... they just have peculiar ways of expressing themselves, y'know what I mean?

(#11 nods again)

Well, it's probably the same in your business, right? What do you do?

#11

I'm a watchmaker.

#12

Really? The finest watchmakers come from Europe I imagine.

(#11 bows slightly)

Anyway, I was telling you, in the agency, when they reach a point like this in a meeting, there's always some character ready with an idea. And it kills me, I mean it's the weirdest thing in the whole world sometimes the way they precede the idea with some kind of phrase. Like... Oh, some account exec'll say, "Here's an idea. Let's run it up the flagpole and see if anyone salutes it."

(#12 laughs)

I mean it's idiotic, but it's funny...

Camera dollies past them in on #3 now as he walks over to #5 who stands at the water fountain. #5 locks up at him over a clip of water.

#3

Look, I was a little excited. Well, you know how it is, I... I didn't mean to get nasty or anything.

#5 finishes the water and tosses the cup in the basket.

#3

I'm glad you're not the kind who lets these emotional appeals influence him.

#10 walks into the shot, stands next to #5, sniffing. #5 crosses away from #3 without answering. #7 steps away from the washbasin and dries his hands. The #8 crosses to washbasin.

#7
(to #8)
Say, are you a salesman?

#8
I'm an architect.

#7
You know what the soft sell is? You're pretty good at it. I'll tell ya. I got a different technique. Jokes. Drinks. Knock 'em on their asses. I made twenty-seven thousand last year selling marmalade. That's not bad. Considering marmalade.

#8 bends to rinsing his face. #7 watches him for a moment.

#7
What are ya getting out of it, kicks?

#8 looks up at him.

#7
The boy is guilty, pal. Like the nose on your face. So let's go home before we get sore throats.

#8 turns off the water, and turns to #7. #7 hands him a paper towel and waits. #8 starts to dry his face, watching #7.

#8
(through the towel)
What's the difference whether you get it here or at the ball game?

#7 looks at him narrowly, and then smiles.

#7
No difference, pal. No difference at all.

#7 exits, letting the door slam. #8 slowly dries his face. A moment later the door opens. We hear a loud laugh from outside. #6 enters the bathroom. The door closes. #6 walks over to the sink, turns on the water. During this next exchange he lets it run over his wrists.

#6
(sarcastically)
Nice bunch of guys.

#8

I guess they’re the same as any.

#6
That loud, heavy-set guy, the one who was tellin' us about his kid... the way be was talking... boy, that was an embarrassing thing.

#6
(smiling)
Yeah.

#8 stands watching #6 cool his wrists.

#6
What a murderous day.

He looks at #8 in the mirror.

#6
(pointedly)
You think we'll be much longer?

#8
I don't know.

#6
He’s guilty for sure. There's not a doubt in the whole world. We shoulda been done already.

#8 doesn't answer him.

#6
Listen, I don't care, ’y’know. It beats workin’.

He laughs, and #8 smiles. Then #6 pointedly looks at #8. His smile vanishes.

#6
You think he’s not guilty?

#8
I don’t know. It's possible.

#6
(friendly)
I don't know you, but I’m bettin' you’ve never been wronger in your life. Y'oughta wrap it up. You're wastin' your time.

#8

Supposing you were the one on trial?

#6 looks at him seriously. There is a pause. He takes a towel and dries his hands.

#6
I'm not used to supposing. I'm just a working man. My boss does the supposing. But I'll try one. Supposing you talk us all outa this, and the kid really did knife his father?

#6 looks at #8, and then exits. #8 stands there alone for a few moments, and we know that this is the problem which has been tormenting him. He doesn't know, and never will. Finally he exits.

#6
I don't know if there are any more to make. I just have a feeling...

#9
Well... I think the boy is probably guilty. But you go ahead and see what comes cut. For the time being it's a little less onesided. That's all. My vote is only temporary. It's all the support I'm equipped to give.

#8 smiles, and nods understandingly.

FOREMAN
(off)
Okay. Let's take seats.

LONG SHOT - THE ENTIRE JURY

As they move for their seats. Finally all are seated.

Camera dollies in on #2 as he settles his glasses on his nose to lock up at the wall clock. He turns to Foreman.

#2
Looks like we'll be here for dinner.

CLOSE UP - FOREMAN

He scowls at #2, then turns and addresses the group.

FOREMAN

Okay. Let's get down to business. Who wants to start it off?

There is a pause.

MEDIUM SHOT - #'S 4, 5, 6

#'s 4 and 6 start to speak at the same time.

#6
Well, I'd like to make a point...
(to #4)
Pardon me.

#4
Maybe it would be profitable if we...
(to #6)
I'm sorry, go ahead.

#6
I didn't mean to interrupt...

#4
No. Go ahead. It's all right.

#6
Well... I was going to say, well this is probably a small point, but anyway...
(across to #8)
The boy had a motive for the killing. You knew, the beating and all. So if he didn't do it, who did? Who else had the motive? That's my point. I mean nobody goes out and kills someone without a motive, not unless he's just plain nuts. Right?

He sits back rather proudly.

CLOSE UP - #8

#8
As far as I know we're supposed to decide whether or not the boy on trial is guilty beyond a reasonable doubt. We're not concerned with anyone else's motives here. That's a job for the police.

MEDIUM CLOSE UP - #4, #3

#4
Very true. But we can't help letting the only motive we know of creep into our thoughts, can we? And we can't help asking ourselves who else might have had a motive. Logically, these things follow.
(nodding at #6)
This gentleman is asking a reasonable question. Somebody killed him. If it wasn't the boy, who was it?

#3
(grinning)
Modjelewski.

CLOSE UP - #7

#7
(mock indignance)
You're talking about the man I love! The world's fastest rookie...

MEDIUM CLOSE UP - #'S 3, 4

#3
(still grinning)
He's got a rubber arm!

We hear a few laughs off.

#4
(angry)
I don't see what's funny about this. If you haven't got anything to add besides jokes I suggest you listen.

#3
Okay. It's just letting off steam. I'm sorry. Go ahead.

#3, as always, shows real respect for #4. The grin fades from his face.

#4
(across to #8)
Well maybe you can answer me. Who else might have killed the father?

MEDIUM SHOT - CENTERED ON #8

#8

Well I don’t know. The father wasn’t exactly a model citizen. The boy’s lawyer brought this out pretty clearly, I thought. He was in prison once. He was known to he a consistent horse better. He spent a lot of time in neighborhood bars and he’d get into fist fights sometimes after a couple of drinks. One of them was over a woman no one could seem to remember. He was a tough, cruel, primitive kind of a man who never held a job for than six month in his life. So here are a few possibilities. He could have been murdered by any one of many men he served time with in prison. By a bookmaker. By a man he’d beaten up. By a woman he’d picked up. By anyone of the characters he was known to hang out with...

CLOSE UP - #10

#10
(blustering)
Boy-oh-boy, that’s the biggest load ’a tripe I ever... Listen, we know the father was a bum! So what has that got to do with anything?

MEDIUM-CLOSE UP - #’S 8, 9

#8
I didn't bring it up. I was asked who else might have killed him. I gave my answer.

#9
(mildly, pointing across table)
That gentleman over there asked a direct question.

CLOSE UP - #10

#10
Everyone’s a lawyer!

CLOSE UP - #3

He points down at #9.

#3

Listen, as long as you've joined the discussion, supposing you answer this question. The old man...

MEDIUM SHOT - #'S 8, 9

#8
(firmly)
There's no need to be sarcastic.

He looks unwaveringly at #3.

MEDIUM SHOT - CENTERED ON #3

#3's face hardens. He stares at #8.

#3
(controlled now)
Would you please answer this question for me...
(Then, sarcastically)
Sir...
(he pauses)
The old man who lived downstairs heard the kid yell cut "I'm going to kill you". A split second later he heard a body hit the floor. Then he saw the kid run out of the house. Now what does all that meant to you?

MEDIUM SHOT - CENTERED ON #9, SHOOTING OVER #3'S SHOULDER

#8 is still standing. He looks down at #9. #9 doesn't have an answer, obviously. He looks up at #8, then down at table. #8 looks across at #3.

#8
I was wondering how clearly the old man could have heard the boy's voice through the ceiling.

#3
He didn't hear it through the ceiling. His window was open and so was the window upstairs. It was a hot night, remember?

#8
The voice came from another apartment. It's not that easy to identify a voice, especially a shouting voice.

CLOSE UP - FOREMAN

FOREMAN
He identified it in court. He picked the boy's voice out of five other voices, blindfolded.

LONG SHOT - ENTIRE JURY, SHOOTING FROM BEHIND FOREMAN

#8
That's not the same. He knows the boy's voice very well. They've lived in the some house for years. But to identify it positively from the apartment downstairs. Isn't it possible that he was wrong... that maybe he thought the boy was upstairs, and automatically decided that the voice he heard was the boy's voice?

#4
I think that's a bit far-fetched.

#10
You said a mouthful!
(to #8)
Look. The old man heard the father's body falling and then he saw the boy run out of the house fifteen seconds later. He saw the boy.

#12
Check. And don't forget the woman across the street. She looked right into the open window and saw the boy stab his father. I mean, isn't that enough for you?

#8
Not right now. No, it isn't.

#7
How do you like him? It's like talking into a dead phone.

#4

The woman saw the killing through the windows of a moving elevated train. The train had six cars and she saw it through the windows of the last two cars. She remembered the most significant details. I don't see how you can argue with that.

#3
(in #6's direction)
Well, what have you got to say about it.

CLOSE UP - #8

#8
(doggedly)
I don’t know. It doesn't sound right to me.

MEDIUM SHOT - #3, BEHIND #12, SHOOTING OVER 4’S SHOULDER

#3
Well supposing you think about it.

He looks down at #12, who has drawn a crude picture of an elevated train. Camera dollies in on them.

#3
Lend me your pencil.

#12 gives it to him. #3 bends over #12 and starts to draw a tic-tac-toe pattern on the same sheet of paper upon which #12 has drawn the train.

#5
(off)
Y’know I don't think he would've shown the knife to his friends that time...

#7
(off)
Listen, what difference does that make?

#3 has finished the tic-tac-toe pattern. He fills in an X, hands the pencil to #12.

#3
Your turn. We might as well pass the time.

MEDIUM SHOT - CENTERED ON #8

He watches this tic-tac-toe business, suddenly angry for the first time.

#5
(off, to #7)
Well I don't know if it makes a difference or not. Listen, this boy...

And #8 is up an his feet, walking fast toward #12's seat, camera panning with him. #12 has just finished making an 0 and is handing pencil to #3. #8 reaches down and snatches the paper off the table. #3 whirls around.

#3
(furious)
Wait a minute.

#8
(hard)
This isn't a game!

#3
(shouting)
Who do you think you are?

He lunges at #8, but is caught by #'s 11 and 12. The Foreman hops into it, taking him by the arm. #8 stands calmly near him, watching. Camera dollies back, as the three jurors move #3 around the table toward his seat. Other jurors are on their feat suddenly, watching, some crowding around. #3 is furious.

#12
All right, let's take it easy.

FOREMAN
(To #3)
Come on, sit down now...

#3 is urged around the table. He shakes off #'s 11 and 12.

#3
I've got a good mind to walk around the table and belt him one!

FOREMAN
Now please. I don't want any fights in here.

He reaches for #3's arm. #3 shakes him off.

#3
Did you see him? The nerve! The absolute nerve!

#10
All right. Forget it. It's not important. Know what I mean?

#3
This isn’t a game. Who does he he is?

MEDIUM SHOT - #8

Standing calmly alone, holding the paper he has snatched from #12, looking steadily at #3.

CLOSE UP - #3

Glaring angrily at #8. Then, finally he alts down in his seat.

FOREMAN
(Off)
Come on now. It's all over. Let’s take our seats.

LONG SHOT - THE ENTIRE JURY FROM ABOVE

Slowly moving to their seats, save #8. #8 looks at the paper in his hand, and suddenly something seems to click for him.

He be gins a walk around the table toward #3's seat. Camera dollies down and on him. When he reaches #3's seat, #3 is busy fixing his tie. #8 stands behind him, looking at the paper. Then suddenly he leans over #3 and throws the paper in front of him onto the table. #3 half rises, angry again. #4 puts a hand on his arm. Ha sits down. Camera is close on him and #8.

#8
Take a look at that sketch.

CLOSE UP - THE SKETCH

#8
(off)
I wonder if anybody has an idea how long it takes an elevated train going at medium speed to pass a given point?

MEDIUM SHOT - #’S 3, 4, 5, 8

#4
What has that got to to with anything?

#8
How long? Take a guess.

#4
I wouldn't have the slightest idea.

#8
(to #5)
What to you think?

#5
I don't know. About ten or twelve seconds maybe.

#3
What's all this for?

#8
(ignoring #3)
I'd say that was a fair guess. Anyone else?

MEDIUM SHOT - #'S 10, 11

#11
That sounds right to me.

#10 looks at him and then across at #8, off.

#10
Come on, what's the guessing game for?

MEDIUM SHOT - #'S 2, 3, 4, 8

#8
(to #2)
What would you say?

#2
(shrugging)
Ten seconds is about right.

#4
All right. Say ten seconds. What are you getting at?

#8

This. A six-car el train passes a given point in tan seconds. Now say that given point is the open window of the room in which the killing took place. You can almost reach out of the window of that room and touch the el tracks. Right?

#2 nods.

MEDIUM SHOT FROM BEHIND FOREMAN'S BACK - FOREMAN, #'S 2, 3, 8, 4, 5, 6, 7

#8
All right. Now let me ask you this. Has anyone here ever lived right next to the el tracks?

#6
Well I just finished painting an apartment that overlooked an el line. I'm a house-painter, y'know. I was there for three days.

#8
What was it like?

#6
What d'ya mean?

#8
Noisy?

#6
Brother! Well it didn't matter. We're all punchy in our business anyway.

#6 laughs and is joined by others.

#8
I lived, in a second-floor apartment next to an el line once. When the windows opens and the train goes by the noise is almost unbearable. You can't hear yourself think.

#3
Okay. You can't hear yourself think. Will you get to the point!

CLOSE UP - #8

#8
I will. Let's take two pieces of testimony and try to put them, together. First, the old man in the apartment downstairs. He says he heard the boy say "I'm going to kill you", and a split second later he heard the body hit the floor. One second later. Right?

#2
(off)
That's right.

MEDIUM SHOT - #8 BEHIND #3

#8
Second, the woman across the street claimed positively that she looked out of her window and saw the killing through the last two cars of a passing elevated train. Right? The last two cars.

#3
All right, what are you giving us here?

#8
Now, we agreed that an el takes about 10 seconds to pass a given point. Since the woman saw the stabbing through the last two cars we can assume that the body fell to the floor just as the train passed, by. Therefore, the el had been roaring by the old man's window for a full ten seconds before the body hit the floor. The old man, according to his own testimony, hearing "I'm going to kill you" and the body falling a split seconds later, would have had hear the boy make this statement while the el was roaring past his nose. It's not possible that he could have heard it.

#3
That's idiotic. Sure he could have heard it.

#8
(to #3)

Do you think so?

#3
The old man said the boy yelled it out. That's enough for me.

#8
If he heard anything at all, he still couldn't have identified the voice wit the el roaring by.

#3
You're talking about a matter of seconds here. Nobody can be that accurate.

#8
Well, I think that testimony which could put a human being into the electric chair should be that accurate.

#5
I don't think he could have heard it.

#6
Yeah. Maybe he didn't hear it. I mean, with the el noise...

#3
What are you people talking about?

#5
Well, it stands to reason...

#3
You're crazy! Why should he lie? What's he got to gain?

#9
Attention, maybe.

#3
You keep coming up with these bright sayings. Why don't you send one in to a newspaper. They pay three dollars.

#6
(to #3)
Hey! What're ya talking to him like that for?

The #3 looks at the #6 then turns disgustedly away. The #6 reaches out and turns #3 firmly around by arm.

#6
A guy who talks like that old man oughta really get stepped on y'know.

#3
Get your hands off me!

#6
You oughta have some respect, mister. If you say stuff like that to him again -- I'm gonna lay you out.
(he releases the #3 and speaks to #9)
Go ahead. You can say anything you want. Why do you think the old man might lie?

#9
It's just that I looked at him for a very long time. The seam of his jacket was split under his arm. Did you notice it? I mean, to come into court like that. He was a very old man with a torn jacket and he walked very slowly to the stand. He was dragging his left leg and trying to hide it because he was ashamed. I think I know him better than anyone her. This is a quiet, frightened, insignificant old man who has been nothing all his life, who has never had recognition, his name in the newspapers. Nobody knows him, nobody quotes him, nobody seeks his advice after seventy-five years. That's a very sad thing, to be nothing. A man like this need to be recognized, to be listened to, to be quoted just once. This is very important. It would be so hard for him to recede into the background when there's a chance to be...

#7
Now, wait a minute. Are you trying to tell us he'd lie just so that he could be important once?

#9
No. He wouldn't really lie. But perhaps he'd make himself believe that he'd heard those words and recognized the boy's face.

#10
Well, that's the most fantastic story I've ever heard. How can you make up a think like that? What do you know about it?

The #9 lowers his head, embarrassed.

#4
Gentlemen, let me remind you, this case is based on a reasonable and logical progression of facts. Let's keep it there.

#11
Facts may be colored by the personalities of the people who present them.

#2
Anybody want a cough drop?

#8
I'll take one.
(#2 offers the cough drops to the #8. #8 takes one)
Thanks.

#12
Say what you like, I still don't see how anybody can think the boy's not guilty.

#8
There's another thing I wanted to talk about for a minute. I think we've proved that the old man couldn't have heard the boy say, "I'm going to kill you," but supposing...

#10
You didn't prove it at all. What are you talking about?

#8

But supposing he really did hear it. This phrase, how many times has each of us used it? Probably hundreds. "I could kill you for that, darling." "If you do that once more, Junior, I'm going to kill you." "Come on, Rocky, kill him." We say it every day. It doesn't mean we're going to kill someone.

#3
Wait a minute! What are you trying to give us here? The phrase was, "I'm going to kill you," and the kid screamed it out at the top of his lungs. Don't tell me he didn't mean it. Anybody says a thing like that the way he said it, they mean it.

#2
Well, gee, I don't know. I remember I was arguing with the guy I work next to at the bank a couple of weeks ago; so he called me an idiot; so I yelled at him...

#3
Now listen, this guy is making you believe things that aren't so. The kid said he was going to kill him and he did kill him.

#5
Well, let me ask you this: do you really think the boy would shout out a thing1 like that so the whole neighborhood would hear it? I don't think so. He's much too bright for that.

#10
Bright? He's a common ignorant slob. He don't even speak good English.

#5
I'd like to change my vote to "not guilty".

#7
Now you've got to be kidding.

#5
You heard.

FOREMAN
Are you sure?

#5
Yes, I'm sure.

FOREMAN
The vote is nine to three in favor of "guilty".

#7
Well, if that isn't the livin' end! What are you basing it on? Stories this guy made up. He oughta write for Amazing Detective Monthly. He'd make a fortune.
(to 5th Juror)
Listen, there are facts staring you right in your face. Every one of them says this kid killed his old man. For cryin' out loud his own lawyer knew he didn't stand a chance right from the beginning. His own lawyer. You could see it. He deserves the chair.

#8
Does he? It's happened before that someone's been convicted of a murder, and executed, and years later someone else has confessed to the crime. Sometimes... sometimes the facts that are staring everyone in the face are wrong.

#7
(to #5th Juror)
I'm talkin' to him --
(he indicates to the 5th Juror)
not to you.
(to the others)
Boy, this guy is really something.
(to the #5th Juror)
Listen, the kid had a lawyer, didn't he? The lawyer presented his case, not you. How come you've got so much to say?

#5
The lawyer was court-appointed.

#7
So what does that mean?

#5
Well, it could mean a lot of things. It could mean he didn't want the case. It could mean he resented being appointed. It's the kind of case that brings him nothing. No money. No glory. Not even much chance of winning. It's not a very promising situation for a young lawyer. He'd really have to believe in his client to put up a good fight. As you pointed out a minute ago, he obviously didn't.

#7
Sure he didn't. Who in hell could, except God come to earth or somebody?
(he looks at his watch then up at the clock)
Come on already! Look at the time!

#11
Pardon me, but I have made some notes here.

#10
Notes yet!

#11
I would like please to say something. I have been listening very closely, and it seems to me that this man --
(he indicates the #8 Juror)
has some very good points to make. From what was presented at the trial the boy looks guilty, but maybe if we go deeper...

#10
Come on, will ya.

#11

There is a question I would like to ask. We assume that the boy committed murder. He stabbed his father in the chest and ran away. This was at ten minutes after twelve. Now, how was he caught by the police? He came home at three o'clock or so and was captured by two detective in the hallway of his house. My question is, if he really had killed his father, why would he come back three hours later? Wouldn't he be afraid of being caught?

#3
Look -- he came home to get his knife. It's not nice to leave knives sticking around in people's chests.

#7
Yeah, especially relatives.

#4
I don’t see anything funny about it.
(to the 11th Juror)
The boy knew that there were people who could identify the knife as the one he had just bought. He had to get it before the police did.

#6
But if he knew the knife could be identified, why did he leave it there in the first place?

#4
Well, I think we can assume he ran out in a state of panic after he killed his father, and then when he finally calmed down, he realized that he had left the knife there.

#11
This then depends on your definition of panic. He was calm enough to see to it that there were no fingerprints on the knife. Now where did his panic start and where did it end?

#3

Look, you can forget all that other stuff. He still came home to dig out his knife and get rid of it.

#11
Three hours later?

#3
Sure, three hours later.

#11
If I were the boy and I had killed my father, I would not have come home three hours later. I would be afraid that the police would be there. I would stay away, knife or no knife.

#3RD
Listen, you voted "guilty", didn't you? What side are you on?

#11
I don't believe I have to be loyal to one side or the other. I am simply asking questions.

#12
Well, this is just off the top of my head, but if I were the boy, and I'd, you know, done the stabbing and everything, I'd take a chance and go back for the knife. I'll bet he figured no one had seen him and that the body probably wasn't even discovered yet. After all, it was the middle of the night. He probably thought no one would find the boy till the next day.

#11
Pardon. Here is my whole point. The woman across the street testified that a moment after she saw the killing, that is, a moment after the el train went by, she screamed and then went to telephone the police. Now, the boy must certainly have heard that scream and known that somebody saw something. I don't think he would have gone back if he had been the murderer.

#4

Two points. One: in his state of panic he may not have heard the scream. Perhaps it wasn't very loud. Two: if he did hear it, he may not have connected it with his own act. Remember he lived in a neighborhood where screams were fairly commonplace.

#3
Right! There's your answer.

#8
Maybe. Maybe he did stab his father, didn't hear the woman's scream, did run out in a panic, did calm down three hours later and come back to try to get the knife, risking being caught by the police. Maybe all those things are so. But maybe they're not. I think there's enough doubt to make us wonder whether he was there at all during the time the murder took place.

#10
What d'ya mean doubt? What are you talking about? Didn't the old man see him running out of the house? He's twisting the facts. I'm telling you!
(to the 11th Juror)
Did or didn't the old man see the kid running out of the house at twelve-ten? Well, did he or didn't he?

#11
He says he did.

#10
Says he did!
(to the others)
Boy-oh-boy! How do you like that?
(to the 11th Juror)

Well, did or didn't the woman across the street see the kid kill his father? She says she did. You're makin' out like it don't matter what people say. What you want to believe, you believe, and what you don't want to believe, so you don't. What kind of way is that? What d'ya think these people get up on the witness stand for -- their health? I'm telling you men the facts are being changed around here. Witnesses are being doubted and there's no reason for it.

#5
Witnesses can make mistakes.

#10
Sure, when you want 'em to, they do! Know what I mean?

FOREMAN
Okay. Let's hold the yelling down.

#10
You keep saying that. Maybe what we need is a little yelling in here. These guys are going off every which way. Did hear the scream, didn't hear the scream. What's the difference? They're just little details. You're forgetting the important stuff. I mean, all of a sudden here everybody...

#5
I'd like to call for another vote.

#10
Listen, I'm talking here.

FOREMAN
There's another vote called for. Now about taking seats.

Jurors who are standing move toward their seats.

#3
What are we gonna gain by voting again?

FOREMAN

I don't know. The gentleman asked...

#3
I never saw so much time spent on nothing.

#2
(mildly)
It only takes a second.

FOREMAN
Okay. I guess the fastest way is to find out who's voting not guilty. All those in favor of not guilty raise their hands.

5th, 8th and 9th Jurors raise their hands.

FOREMAN
Still the same. One, two, three not guilty's. Nine guilty's.

#7
So now where are we? I'm telling you, we can yakety-yak until next Tuesday here. Where's it getting us?

#11
Pardon.
(he slowly raises his hand)
I vote not guilty.

#7
Oh, brother!

#3
Oh, now listen? What are you talking about? I mean we're all going crazy in here or something. This kid is guilty. Why don'tcha pay attention to the facts!

MEDIUM SHOT - #'S 2, 3, 4.

#3
(To #4)
Listen, tell him, will ya?

#4 shrugs.

#3

This getting to be a joke!

He gets up and starts a walk down toward #7. Camera pans with him.

FOREMAN
(off)
The vote is eight to four, favor of guilty.

#3
(Over #5's shoulder toward #11)
I mean everybody's heart is starting to bleed for this punk little kid like the President just declared it Love Your Underprivileged Brother week, or something. Listen I'd like you to stand up and tell me why you changed your vote. Come on, give me reasons!

CLOSE UP - #11

He locks straight at #3, and speaks strongly.

#11
I don't have to defend my decision to you! I have a reasonable doubt in my mind.

MEDIUM SHOT - #'S 3, 5, 6, 8, 9 SHOOTING ACROSS TABLE FROM BEHIND

#3 stands behind #5 who is turned, looking at him. #3 looks off at #11 angrily.

#3
What reasonable doubt? That's nothing but words!

He leans over the table, pulls the switch knife out of the table, and holds it up.

#3
Here, look at this! The kid you just decided isn't guilty was seen ramming this thing into his father! Well, look at it, Mr. Reasonable Doubt!

#3 flicks it angrily into the table. It quivers in the wood.

#9
(mildly)
That’s not the knife. Don't you remember?

#3 whirls and stares at him. #9 regards him steadily. #8 smiles openly.

CLOSE UP - #3

Burning, but controlled.

#3
Brilliant!

MEDIUM SHOT - #'S 3, 5, 6, 7, 8

#3 stares at #9 for another moment and then walks around past #7 and off camera. His next lines will be taken at the window. There is a pause. #7 looks around.

#7
I'm tellin' ya, this is the craziest!
(to #8)
I mean you're sittin' in here pulling stories outa thin air! What're we supposed to believe?
(to all)
I’m telling ya if this guy
(indicating #8)
sat ringside at the Dempsey-Firpo fight, he'd be tryin' to tell us Firpo won!
(to #8)
Lock, what about the old man? Are we supposed to believe that he didn't get up and run to his door and see the kid tearing down the stairs fifteen seconds after the killing? He's only saying he did to be important, right? I mean what’s the point of the whole...

#5
(interrupting)
Hold it a second.

#7
(looking at #5 and doing a Clem McCarthy)

And the Baltimore rooter is heard from! And pop-ups are falling for base hits wherever we look. I tell you...

#5
(interrupting)
Did the old man say he ran to the door.

#7
Ran. Walked. What's the difference? He got there.

#6
He said he ran to the door. At least I think he did.

#5
I don't remember what he said. But I don't see bow he could run.

MEDIUM SHOT - #'S 4, 5, 6, 7, SHOOTING FROM BEHIND #8

#4
He said, he want from his bedroom to the front door. That's enough, isn't it?

#8
Where was his bedroom again?

MEDIUM SHOT - #'S 7, 6, 9, 10

#10
Down the hall somewhere. I thought you remembered anything. Don't you remember that?

#8
No. Mr. Foreman, I'd like to take a look at the diagram of the apartment.

#7
(do #8)
Why don't we have them run the trial over just so you can get everything straight?

#8
(ignoring him)
Mr. Foreman...

MEDIUM SHOT - FOREMAN, #12, #11 AND #3 IN BACKGROUND AT WINDOW

FOREMAN
I heard you.

He rises, and walks out of shot towards door. #3, standing at windows glares at #8. Camera dollies is on #3. We hear business of door opening and closing during next lines.

#3
All right, what's this for? How come you're the only one in the room who wants to see exhibits all he time?

#5
(off)
I want to see this one too.

#3 starts a walk from the window which will lead him to position directly behind #8. Camera pans with him.

#3
And I want to stop wasting time.

#4
(off)
If we're going to start wading through all that nonsense about where the body was found...

#3 is standing behind #8 now. Camera is in medium close up on them both. #8 leans across table toward #4's position.

#8
We're not. Not unless someone else wants to. I'd like to see if a very old man who drags one leg when he walks because he had a stroke last year can get from his bed to his front door in fifteen seconds.

#3
He said twenty seconds!

#8
He said fifteen.

#3
Now I'm telling you he said twenty! What're you trying to distort...

#11

(off)
He said fifteen.

#3
(turning in that direction)
How does he know how long fifteen seconds is. You can't judge that kind of a thing!

Camera dollies back slightly to include #9. He Looks up at #3.

#9
He said fifteen seconds. He was very positive about it.
(Down to #9, furiously)
He’s an old man. You saw him. Half the time he was confused. How could he be positive about... anything?

Camera moves in for big closeup of #3. He looks around, angrily unable to cover up his blunder. Then he walks out of the closeup, and stalks around the table. Camera pans with him. The others watch. As he gets to his seat the door behind him opens. The guard enters carrying a large pen and ink diagram of the apartment. Foremen crosses to guard.

GUARD
This what you wanted?

FOREMAN
That’s right. Thanks.

The guard nods and exits. Foreman holds up the diagram and, looking at it, crosses back toward his seat, camera panning with him. #8 rises from his seat and walks toward Foreman's seat. During these crosses we hear the following.

#4
I don't see what we're going to prove here. The man said he saw the boy running out.

#8
(walking to Foreman)

Well let's see if the details bear him out. As soon as the body fell to the floor, he said, he heard footsteps upstairs running toward the front door. He heard the upstairs door open and the footsteps start down the stairs. He got to his front door as soon as he could. He swore that it couldn't have been more than fifteen seconds. Now, if the killer began running immediately...

Camera is now on medium shot of #8 standing next to Foreman at head of table.

#12
(interrupting)
Well maybe be didn’t.

#8
The old man said be did!

LONG SHOT - ENTIRE JURY FROM BEHIND FOREMAN AND #8.

#7
(to #8)
Brother, I crown you king of the hair splitters.

#10 laughs at this.

#6
(mildly to #7)
Listen, why don't you stop making smart remarks all the time.

#7
My friend, for your three dollars a day you've gotta listen to everything.

There is a silence for a moment. #6 has no answer, but he hasn’t liked what he heard.

#10
(to #8)
Well now that you've got that thing in here, what about it?

#8
(to Foreman)
May I?

He takes the chart, and holds it up on a corner of the table so that everyone can see it.

MEDIUM SHOT - #8 WITH DIAGRAM

Also included in shot are #12, and #11 and Foreman. During #8's lines, #'s 2, 5, and 6 also crowd around diagram. The diagram itself is a layout of a railroad flat. A bedroom faces the el tracks. Behind it is a series of rooms off a long hall. In the front room is an X marking the spot where the body was found. At the back of the apartment we see the entrance into the apartment hall from the building hall. We see a flight of stairs in the building hall. Each roam is labeled, and the dimensions of each room are shown.

#8
This is the apartment in which the killing took place. The old man's apartment is directly beneath it, and exactly the same.
(pointing)
Here are the el tracks. The bedroom. Another bedroom. Living room. Bath-room. Kitchen. And this is the hall. Here's the front door to the apartment. And here are the stairs.
(pointing to front bedroom)
Now, the old man was in bed in this room. He says ha got up, went out into the hall, down the hall to the front door, opened it and looked out just in time to see the boy racing down the stairs. Am I right so far?

CLOSE UP - #3

He stands at his chair, watching.

#3
That's the story, for the nineteenth time.

MEDIUM SHOT - #8

#8
(ignoring this)
Fifteen seconds after he heard the body fall.

#11
Correct.

#8
His bed was at the window, It's --
(looking closely at diagram)
12 feet from his bed to the bedroom door. The length of the hall is 43 feet 6 inches. Now, he had to get up out of bed, walk 12 feet, open the bedroom door, walk 43 feet and open the front door... all in 15 seconds. Do you think he could have done it?

#10, standing behind #8, barks out.

#10
Sure he coulda done it!

#11
(to #10)
He can only walk very slowly. They had to help him into the witness chair.

MEDIUM SHOT - #3, #4

#3
You make it sound like a long walk. It's not!

MEDIUM SHOT #8

He looks in #3's direction, and then, laying down the diagram begins a walk around to the other side of the table, camera panning with him. As he walks, #9, who had been standing near #8, answers #3.

#9
For an old man who had a stroke it's a long walk.

#8 has walked directly to the empty chairs of #2 and #3. He takes one in each hand now, and swings them out into the middle of the floor, placing them side by side. #3 strides into the shot.

#3
What are you doing?

#8
I want to try this thing, Let's see how long it took him.

#3

What d'you mean you want to try it? Why didn't the kid's lawyer bring it up if it's so important?

The other jurors have begun to crowd into the shot.

#5
Well maybe he just didn't think of it.

#10
What d'ya mean didn't think of it! You think the man's an idiot or some thing? It's an obvious thing.

#5
Did you think of it?

#10 moves a step or two towards #5.

#10
(angry, to #5)
Listen, smart guy! It don't matter whether I thought of it.

FOREMAN
(worried)
Okay, now...

#10
He didn't bring it up because he knew the answer'd hurt his case. Now what d'ya think of that?

FOREMAN
Okay...

#8
It's possible that he didn't bring it up because it would have meant badgering and bullying a helpless old man, something that I don't think sits very well with a jury. Most lawyers avoid that kind of if they can.

#7
(loud)
So what kind of a bum is he then?

#8
(quietly)
That's what I've been asking.

#7 shuts up, sorry that he's spoke.

#8
All right, let's say these chairs are the old man's bed. I'm going to pace off 12 feet, the length of the bedroom.

He begins to do this, camera staying with him.

#3
You're crazy. You can't recreate a thing like that.

#11
I'd like to see it.

#3
It's a ridiculous waste of time!

#6
Let him do it.

#8 has now paced off his 12 feet. He stands on the spot.

#8
Someone hand me a chair.

#6 picks up a chair and bring it to him. #8 puts it down where he is standing. Camera moves in far medium shot of #8.

#8
All right, this is the bedroom door.

He looks around.

#8
The hall is a little over 43 feet long. I'll pace over to that wall
(pointing)
and back again.

He starts to do it, counting his steps silently as he paces. He passes #10 after a dozen steps.

#10
Look, this is absolutely insane. What's the idea of wasting everybody's time here.

#8
(interrupting his counting)

Sixteen.

He stops pacing, turns to #10.

#8
According to you it'll only take 15 seconds. We can spare that.

He resumes his pacing, counting to himself. He reaches the wall. Everyone watches silently. He turns and paces back, counting off the rest of the 43 steps.

#8
(aloud)
Thirty-nine, forty, forty-one, forty-two, forty-three. Okay, pass me another chair please.

#2 hands him a chair. He places it down.

#8
This is the door to the outside hall and stairway. It was chain-locked according to testimony.

#5
Right.

#8 now walks over to the two chairs he placed side by side, camera dollying in close on him. He sits down.

#8
Who's got a watch with a second hand?

#2
I have.

#8
When you want me to start, stamp your foot. That'll be the body falling. Time me from there.

He lies down on the two chairs.

#7
Anyone for charades?

#3
(exasperated)
I've never seen anything like this in whole life!

#8

Okay. I'm ready.

He lies down on the chairs. They all watch carefully. #2 stares at his watch, waiting. There is a tense silence.

#2
(apologetically)
I want to wait till the second hand reaches sixty.

They wait silent, tense. Suddenly #2 stamps his foot. #8 rises to a sitting position, swings his legs to the floor. Ha stands up. #2 keeps his eyes on the watch. #8 begins to hobble, dragging one leg, toward the chair which serves as the bedroom door. He reaches it, pretends to open it. He turns now and begins to hobble along the simulated 43 foot hallway.

#10
Come on. Speed it up. He walked twice as fast as that!

#8 continues to walk.

#11
This is, I think, even more quickly that the old man walked in the courtroom.

#8
(Still hobbling)
If you think I should go faster, I will.

He speeds up his pace slightly, reaches the wall and turns. He heads for the second chair, the chair simulating the door to the outer hallway.

#3
Come on, willya! Let's get this kid stuff over with!

They watch as #8 reaches the last chair. Camera is now on medium close up of him. He pretends to open an imaginary chain lock, and then opens the imaginary door,

#8
Stop!

#2
Right.

#8
What's the time?

Camera is on #8 in foreground, and #2 in background, surrounded by four or five of the jurors.

#2
Fifteen... Twenty... Thirty...
Thirty-three seconds exactly.

#6
Thirty-three seconds!

The other jurors around #2 ad lib their surprise.

#8
I think this is what happened. The old man bad heard the fight between the boy and his father a few hours earlier. Then, while lying in bed he heard a body hit the floor in the boy's apartment, and he heard the woman scream from across the street. He got up, tried to get to the door, heard someone racing down the stairs, and assumed it was the boy.

#6
I think that's possible.

CLOSE UP - #3

Standing, furious.

#3
(shouting)
Assumed? Now listen to me, you people! I've seen all kinds of dishonesty in my day... but this little display takes the cake!

MEDIUM SHOT - #8 IN FOREGROUND, #3 IN BACKGROUND #'S 2, 4, 5, 6 ALSO IN SHOT

#3
You come in here with your heart bleeding all over the floor about slum kids and injustice, and you make up some wild stories, and all of a sudden you start getting through to some of these old ladies in here! Well you're not getting through to me! I've had enough!
(to all)

What's the matter with you people? Every one of you knows this kid is guilty! He's got to burn! We're letting him slip through our fingers here!

MEDIUM SHOT - #8, AND BEHIND HIM #'S 11, 12, 9, FOREMAN

#8
(calmly)
Slip through our fingers? Are you his executioner?

MEDIUM SHOT - #3, AND BEHIND HIM #'S 2, 4, 5, 6, 7, 10

#3
(furious)
I'm one of 'em.

MEDIUM SHOT

#8
Maybe you'd like to pull the switch...

MEDIUM SHOT

#3
(shouting)
For this kid? You bet I'd like to pull the switch!

MEDIUM SHOT

#8
I'm sorry for you...

#3
(off)
Don't start with me now!

#8
What it must feel like to want to pull the switch!

CLOSE UP - #3

#3
(raging)
Listen, you shut up!

#8
(baiting him)

Ever since we walked into this room you've been behaving like a self-appointed public avenger!

#3
(loud)
I'm telling you now! Shut up!

CLOSE UP - #8, OVER #3'S SHOULDER

#8
You want to see this boy die because you personally want it, not because of the facts.

#3
(roaring)
Shut up!

#8
You're a sadist...

MEDIUM SHOT - #3, #8 AND THE REST OF THE JURY GROUPED AROUND THEM

#3
(roaring)
Shut up!

And he lunges wildly at #8. #8 holds his ground as #3 is caught by many hands and held back. He strains against the hands, big face dark with rage.

#3
Let me go! I'll kill him! I'll kill him!

CLOSE UP - #8

#8
(calmly)
You don't really mean you'll kill me, do you?

MEDIUM SHOT - THE ENTIRE JURY

Still held, he stares bitterly at #8. Then, finally, he shrugs off the many hands on him adjusts his jacket and walks around the group of silent, watching men to the window, camera moving up high, and holding on him and the entire jury. He stands at the window and there is not a sound for a moment. Then we hear the sound of the door being opened. Some of the jurors turn their heads in that direction.

MEDIUM SHOT - GUARD IN THE DOORWAY

GUARD
Is there anything wrong, gentlemen? I heard some noise.

144 MEDIUM SHOT - FOREMAN AND OTHERS 144

FOREMAN
No. There's nothing wrong.

He walks toward the door, picking up the diagram of the apartment on the way. He reaches the door. Camera holds on shot of Foreman and guard.

The Guard takes the plan, looks carefully around the room then exits. There is a pause. The others look at the #3.

#3
Well, what are you staring at?

The others, embarrassed, turn away. Some of them take their seats.

#12
Well, -- I suppose someone has to -- start it off again.

#2
It's getting late.
(to the Foreman)
What do they do, take us out to restaurant for supper?

FOREMAN
How do I know?

#2
I wonder if they let us go home in case we can't finish tonight. I've got a boy with mumps.
(he smiles self-consciously, gesturing with his hands around his jaws to indicate a swelling)
He's out to here. The wife says he looks like Mussolini.

Camera holds on him as he subsides into embarrassed silence. No one laughs.

MEDIUM SHOT - #'S 2, 3, 4, 5, 6, 7

Sitting silently, each trying to think of some way to break cut of his own personal embarrassment. The room begins to darken perceptibly now. No one notices it.

MEDIUM SHOT - #'S 8, 9, 10, 11, 12, FOREMAN

And now #11 clears his throat slightly and leans forward. Camera closes in on him as he talks.

#11
Pardon. This fighting. This is not why we are here, to fight. We have a responsibility. This, I have always thought, is a remarkable thing about democracy. That we are, uh, what is the word?
(A pause)
Notified. That we are notified by mail to come down to this place and decide on the guilt or innocence of a man we have never heard of before. We have nothing to gain or lose by our verdict. This is one of the reasons why we are strong. We should not make it a personal thing.

Now fearing perhaps that he has forced his views on others a bit too passionately, #11 sits back, somewhat embarrassed.

#11
(humbly)
Thank you.

Again there is a silence. Camera is on #11, #12, and Foreman.

#12
(brightly)
Um, if no one else has an idea I may have a cutie here. I mean I haven't put much thought into it. Anyway, lemme throw it out on the stoop and see if the cat licks it up.

FOREMAN
See if the cat licks it up?

#12
(insisting)
Yeah! Now, if the boy arrived henna...

The Foreman laughs and then #12 realizes that he has fallen into the trap he set for himself earlier. He stops in mid-sentence. #11 joins in the laughter. The edge is off the tension now, but #12 shuts up tight and begins to doodle furiously.

MEDIUM SHOT - #'S 4, 5, 6, 7

#5
(Looking at window)
Look at how dark it’s getting. We’re gonna have a storm.

There is a pause.

#5
Boy it's hot.

He yanks open his tie and fans himself with some papers. Then idly, he turns to #4. #4 still sits there in tie and jacket, seemingly not bothered by the heat at all. #5 looks at him.

#5
(grinning)
Don't you sweat?

#4
(coldly)
No, I don’t.

#5, surprised at #4's coldness, turns away. There is a pause. #6 looks around a bit nervously.

#6
Uh, listen, I was wondering if maybe we shouldn't take another vote.

#7
Great idea. Maybe we can follow this one up with dancing and refreshments.

#6
Mr. Foreman?

MEDIUM SHOT - #'S 10, 11, 12, FOREMAN

FOREMAN
It's all right with me. Anyone doesn't want to vote?

He looks around the table. There is no answer. #12 doodles away still annoyed with himself.

#3
I think we ought to have an open ballot. Call out our votes, y'know? Let's see who stands where.

FOREMAN
That sounds fair. Anyone object?

There is no answer.

FOREMAN
All right. I'll call off your jury numbers.

He takes a pencil and paper and draws a line down the middle of the paper.

FOREMAN
I vote guilty.

He makes a check on one side of the line.

FOREMAN
Number two?

CLOSE UP - #2

He has a hard decision to make. He thinks for a long moment.

#2
Not guilty.

FOREMAN
(Off)
Number 3?

Camera pans down to #3. He is staring at #2.

#3
(sharply)
Guilty.

Camera, pans to #4. He sits back, relaxed, at ease.

FOREMAN
(Off)
Number 4?

#4
Guilty.

FOREMAN
(Off)
Number 5?

#5
Not guilty.

FOREMAN
(Off)
Number 6?

Camera pans down to #6. He stares down at the table, picking at a piece of cuticle on his thumb. His decision is difficult too.

#6
(low)
Not guilty.

As soon as he speaks he puts his sore thumb in his mouth, sucks on the cuticle. Camera pans to #7. He is looking disgustedly at #6.

FOREMAN
(Off)
Number 7?

#7
Guilty.

CLOSE UP - #8

FOREMAN
(off)
Number 8?

#8
Not guilty.

Camera pans to #9. He is in the process of taking a pill out of a bottle.

FOREMAN
(off)
Number 9?

#9
Not guilty.

Camera pans to #10. He is touching his tender nose appraisingly.

FOREMAN
(Off)
Number 10?

#10
(loud)

Guilty!

Camera pans to #11. He watches #10 with some distaste.

FOREMAN
(Off)
Number 11?

#11
Not guilty.

Camera pans to #12. He doodles concentric circles on a pad.

FOREMAN
(Off)
Number 12?

There is a pause.

FOREMAN
(impatiently)
Number 12?

#12
Guilty.

Camera pans to Foreman. He tallies his marks quickly.

FOREMAN
Six to six.

MEDIUM CLOSE UP - #7

He repeats his Clem McCarthy take-off.

#7
And, we go into extra innings here!

He gets up and heads for the water fountain, camera panning with him. As he passes #10, #10 starts to rise, annoyed.

Camera holds on #10.

#10
Six to six! I'm telling you, some of you people in here are out of your minds. A kid like that.

#9
(mildly to #10)
I don’t think the kind of boy he is has anything to do with it. The facts are supposed to determine the case.

#10
(Down to #9)
Ah, don't give me any of that! I'm sick and tired of facts. You can twist 'em any way you like. Know what I mean?

He walks away. Camera holds on #9. He half rises, angrily, and calls after #10.

#9
(indicating #8)
That's exactly the point this gentleman has been making. I mean you keep shouting at the top of your lungs...

#8 puts his hand on #9's shoulder. #9 looks at him. #8's expression says, "he isn't worth over-exiting yourself." #9 sits down, quite agitated. He takes out a handkerchief and mops his brow with it. We hear ad lib conversation at the water cooler.

#9
I'd like to be a little younger. That man...

He stops, unable to go on. Then, trying to calm himself:

#9
It's very hot in here.

#8 nods sympathetically.

#8
D'you want some water?

#9
No thanks.

#9 continues to mop his brow. #8 rises and camera holds on medium close-up of him as he walks to the window. He stands there, looking out. It has grown considerably darker now, oppressively still. The room is silent save for a murmur of voices at the fountain. #8 runs his hands over his face wearily. Then he opens his tie.

MEDIUM SHOT - #'S 7, 10, 3 AT THE WATER FOUNTAIN

#3 is drinking. #7 holds a cup under the faucet. #10 waits his turn. #7 turns to the window. His cup overflows. He turns to it, steps away from the fountain and begins to drink, staring at the window. #2 walks into shot to wait his turn at the fountain.

#2
It’s going to rain.

#7
(sarcastically)
No!

#2 meekly turns away and gets a paper cup. #7 turns to him.

#7
How come you switched?

#2
Well, it just seemed to me...

#7
(interrupting)
I mean you haven't got a leg to stand on. You know that, don'tcha?

#2
Well I don’t feel that way. There’re a lot of details that never came out...

#10
(interrupting)
Details! You’re just letting yourself get by a bunch'a what d'ya callem... intellectuals.

#2
(mildly)
Now that’s not so.

#10
Ah come on. You’re like everybody else. You think too much, you get mixed up.
(to #3)
Know what I mean?

#2
(annoyed)
Now listen, I don't think you have any right to...

But #10 has crumpled his cup, flipped it an the floor and walked away, leaving #2 in the middle of a sentence.

#2
(softly)
Loudmouth!

#2 turns to #7, opens his mouth as if to speak, then, decides not to. He walks over to the other window, camera dollying with him. He puts his head against the glass ands stares out. It is darker now than before.

CLOSE UP - #8

Still at window staring out. We see a portion of the skyline behind him, outside window. There is absolute silence in the room.

LONG SHOT - ENTIRE ROOM FROM OVERHEAD

There is no movement in the room. Everyone waits for the storm now. And suddenly it comes. We hear only the sound of the rain, pouring down into the silence. No lightning. No thunder. Heads turn toward the windows. There is no talk. The rain pours down as if this were a tropical storm.

MEDIUM SHOT - #8

He steps back from the window as the rain splashes in. Than he reaches forward and closes the window. We hear the sound of the other window being closed by #2. #8 stares out the window.

LONG SHOT - ENTIRE JURY

From Foreman's end of table. They all stare at the windows silently. The room is quite dark now. The rain pours down.

MEDIUM SHOTS - GROUPS OF JURORS

Their faces in shadows for the first time, staring at the depressing spectacle of the rain.

MEDIUM SHOT - THE FOREMAN

Seated at table. Finally he gets up and camera follows him as he walks over to the door. Next to it is a light switch. He flips it on.

LONG SHOT - THE ENTIRE JURY

There is a flickering of light, and then the overhead fluorescent lamps come on full, throwing harsh white light on to the jurors. At the same moment we hear the first crack of thunder. (Through out the remainder of the play the rain continues, and now and then there are flashes of lightning and the rumble of thunder.) The foreman walks over to the windows now, and looks out. Camera moves in on him. He stands next to #8.

FOREMAN

(low)
Wow!

He speaks almost to himself,

FOREMAN
Look at that, will ya!

#8 nods and continues to look out.

FOREMAN
Think it'll cool things off?

#8
(looking at him)
Yeah, I guess so.

FOREMAN
(whistles)
Boy! Look at it go! Reminds me of the storm we had last... November something. What a storm! Right in the middle of the game. We're behind 7-6, but we're just startin' to move the ball, off tackle, y'know! Boom! Boom! Boom! Boy I'll never forget that. We had this kid Slattery. A real ox. Wish I had another one like him.

He looks up to find #8 looking at him.

FOREMAN
h, I probably forgot to tell you I'm assistant head coach at the Andrew J. McCorkle High School. That's in Queens.

#8 nods, smiles briefly and looks out the window.

FOREMAN
So anyway we're movin' real nice. Their line is comin' apart. I'm tellin' ya, this Slattery! Boy!
(He chuckles)
And all of a sudden it starts to come down cats and dogs. It was murder. I swear I almost bawled. We couldn't go nowhere!

#7
(off)
Hey, let's get this fan goin' in here. What d'ya say?

The Foreman turns to the sound of the voice. He looks at #8 for a moment. Then he walks across the room, camera moving with him.

Then he climbs down and turns around as if waiting for applause. No one speaks. His smile fades, and camera follows him as he slowly walks to his seat and sits down.

MEDIUM SHOT - #7

He is back in his seat now. He looks up at the fan. Then he takes a page from his scrap pad, crumples it up and flips it up at the fan. He tears off another page and repeats this business. And another.

CLOSE UP - THE FAN

A wad of paper hits it, and is flung off by the blades.

MEDIUM SHOT - #'S 3, 4

Standing near the water fountain. The wad of paper strikes #3 in the shoulder. He turns around angrily.

#7
(off, calling)
Sorry.

#3 turns back to #4.

#3
(low)
What a stupid thing to do.

#4 bends to get a drink of water. #3 waits till he straightens up.

#3
Some rain, huh?

#4, drinking, nods.

#3
Well, what d'ya think of this thing? It’s even-steven.

#4 nods as he drinks.

#3
Kind of surprising, isn’t it?

#4
Yes.

#3
Listen, that business before, you know where what's-his-name, that tall guy over there was baiting me, I mean that doesn’t prove anything. Listen, I'm a very excitable person, y'know. So where does he get off to call me a public avenger, and a sadist and everything? Anybody in his right mind'd blow his stack, wouldn't he? He was just trying to bait me.

#4
(wryly)
He did an excellent job.

We hear jumbled ad lib conversation in background.

#3
(missing this)
Now I'm being sincere about this. I'm no small potatoes like some of these people. I run a messenger service that employs over sixty-five workers. Well maybe that doesn't mean anything to you, but I consider myself a respectable citizen, and I’m trying to do my duty in here very sincerely. He has no call to act like that. I mean I could really’ve belted him one!

#10
(off)
Listen, I’ll tell you what I think.

#'s 3 and 4 turn in the direction of his voice.

MEDIUM SHOT - #10, STANDING AT HIS SEAT

#10
We’re goin' nowhere here. I'm ready to walk into court right now and declare a hung jury. There's no point in this thing goin' on any more.

LONG SHOT - THE ENTIRE JURY

Most of them are seated now. #'s 3 and #4 walk back to their seats.

#7

I go for that too. Let's take it into the judge and let the kid take his chances with twelve other guys.

#8
I don't think the court will accept hung jury. We haven't been in, here very long.

#7
(standing up)
Well let’s find out!

#11
I am not in favor of this.

#7
(to #11)
Listen, this kid wouldn't stand a chance with another jury and you know it.
(turning to the others)
C'mon, we're hung. Nobody's gonna change his opinion. Let’s take it inside.

MEDIUM SHOT - #'S 5,6,7

#5
You still don't think there’s any room for a reasonable doubt?

#7
No I don't!

CLOSE UP - #11

#11
Pardon. Maybe you don’t fully understand the term reasonable doubt...

MEDIUM SHOT - #’3 4, 5, 6, 7 SHOOTING PAST #11'S PROFILE

#7 reacts strongly to this. He walks around the table until he is standing behind #4, speaking angrily to #11 as he goes.

#7
What d'ya mean I don't understand it? Who d'ya think you are to talk to me like that?
(to all)

How d'ya like this guy? I'm tellin' ya they're all alike. He comes over to this country running for his life and before he can even take a big breath he's telling us how to run the show! The arrogance of the guy!

#5
(to #7)
Wait a second! Nobody around here's asking where you came from!

#7
I was born right here!

#5
Or where your father came from!

#7 doesn't answer, but stares at #5, amazed at this unexpected outburst.

#5
Where does it hurt us to take a few tips from people who come running here for their lives? Maybe they learned something we don't know. We're not so perfect!

#11
(mildly)
Please. It doesn't matter...

#7
(to #5 on top of #11's lines)
Okay homely philosopher... but lemme tell you something. Nobody around here's gonna tell me what words I understand and what words I don't. Hear?
(pointing at #11)
Especially him!

#7 stalks back to his seat, camera panning with him. He sits down. During the Foreman's next lines #7, indignantly looks around, feeling that he has won his skirmish, until finally his eyes meet #8's. #8 looks at him long and hard, and finally #7 breaks and turns away.

FOREMAN
(Off)

All right. Let's stop the arguing for two minutes in here. Who's got something constructive to say?

Camera holds on #'s 7 and 8. There is a silence. Then #8 turns toward the others.

#8
I'd like to go over something, if you gentlemen don't mind.

On the word gentlemen he looks pointedly at #7.

#8
An important point for the prosecution was the fact that the boy, after he claimed he was at the movies during the hours the killing took place, couldn't name the pictures he saw or the stars who appeared in them.
(Pointing across at #4)
This gentleman has repeated that point in here several times.

MEDIUM SHOT - CENTERED ON #4

#4
That's correct. It was the only alibi the boy offered, and he himself couldn’t back it up with any details at all.

MEDIUM SHOT - CENTERED ON #8, SHOOTING OVER #4'S SHOULDER

#8
Putting yourself in the boy’s place, if you can, do you think you’d be able to remember details after an upsetting experience such as being struck in the face by your father?

MEDIUM SHOT - CENTERED ON #4, SHOOTING OVER #8'S SHOULDER

#4
I think so, if there were any special details to remember. He couldn't remember the movies at the theatre he named because he wasn’t there that night.

MEDIUM SHOT - CENTERED ON #8, SHOOTING OVER #4'S SHOULDER

#8
According to police testimony in court he was questioned by the police in the kitchen of his apartment while the body of his father was lying an the floor in the bedroom. Do you think you could remember details under those circumstances?

#4
I do.

#8
Under great emotional stress?

#4
Under great emotional stress.

#8
He remembered the movies in court. He named them correctly and he named the stars who played in them.

#8
And the night before that?

#4
(beginning to strain)
That was ... Tuesday. The night before that? I... was... oh yes. That was the night of the bridge tournament. I played bridge.

#8
And Monday night?

#7
(off)
When you get him down to New Year's Eve, 1952, lemme know.

#4
(Trying to remember)
Monday.

There is a pause.

#4
Monday night.
(remembering)
Monday night my wife and I went to the movies.

#8
(fast)
What did you see?

#4
(faster)
"The Scarlet Circle".
(he smiles)
It's a very clever who-done-it.

#8
What was the second feature?

#4
(straining)
The... I'll tell you in a minute.
The... Remarkable Mrs. Something.
Mrs... uh... Bainbridge. "The
Remarkable Mrs. Bainbridge".

There is a pause.

CLOSE UP - #2

#2
I saw that. It's called. "The
Amazing Mrs. Bainbridge."

160 MEDIUM SHOT **160**

#4
(embarrassed)
The... Amazing Mrs. Bainbridge.
Yes. I think that’s right.

#8
Who was in "The Amazing Mrs.
Bainbridge”?

There is a long pause as #4 strains for the names.

#4
Barbara... Long, I think. She’s a
dark, very pretty girl. Barbara...
Lang... Lane ... something like
that.

#8
Who else?

CLOSE UP - THE SIDE OF #4'S NECK

A single drop of sweat glistens there, and then rolls down into his collar. He moves uncomfortably.

MEDIUM SHOT

#4
Well, I'd never heard of them before. It was a very inexpensive second feature, with unknown...

#8
(interrupting)
And you weren't under an emotional strain, were you!

#4 doesn't answer for a long moment.

#4
(quietly)
No, I wasn't.

MEDIUM SHOT - #'S 9, 10

#9
I think the point is made.

There is a silence. #10 blows his nose.

#10
Big point!

#9
I think it is a big point.

#10
What? Just because he
(indicating #4)
can't remember the name of some two-bit movie star? I suppose that proves the kid was at the movies.

#9
(quietly)
No. But it indicates that no one can prove he wasn't. He might have been at the movies and forgotten what he saw. It's possible. If it's perfectly normal for this gentleman
(indicating #4)
to forget a few details, then it's also perfectly normal for the boy. Being accused of murder isn't necessarily supposed to give him an infallible memory.

#10
(to #9)
You can talk till your tongue is draggin1 on the floor. The boy is guilty. Period. Know what I mean, my friend?

They look at each other for a moment, and then #9 turns away.

#10
Who’s got those cough drops.

MEDIUM SHOT - FOREMAN #2

#2
(staring hard at #10)
They're all gone, my friend.

He flips the empty box across the table. The Foreman watches it slide, and then looks up.

FOREMAN
Y’know there's something we’re for-getting here that I was just thinking about. Well that's the whole business that dragged, cut forever, y'know with the psychiatrist, where he got all involved...

MEDIUM SHOT - FOREMAN, #’S 10, 11, 12

#10
Now don’t start with all that phoney psycho-whatever-you-call it stuff. What a racket that is! Filling people's heads with all that junk. Listen I’ve got three psychiatrists keeping their cars in one of my garages. The whole three of 'em are crazy!

FOREMAN
Listen, there’s a point I’m tryin’ to make here. Do you mind?

#10
I wouldn't give you a nickel for a psychiatrist's testimony.

CLOSE UP - #8

#8
(meaning #10)

Why don't you let the man talk. You can take five minutes on the uselessness of psychiatry when he's finished.

167 CLOSE UP - #10 **167**

He glares angrily at #8 for a moment, then turns away, and blows his nose hard.

MEDIUM SHOT - CENTERED ON FOREMAN

FOREMAN
(Looking peculiarly at #8)
Thanks.
(To all)
What I was gonna say was, the psychiatrist definitely stated that the boy had strong homicidal tendencies. I mean that he felt like killing some half the time. Well, not felt like, that he was, what d'ya call it, capable. He described all those tests, inkblots and all that stuff, and he said the kid is definitely a killer-type. Am I right?

#12
Check. I think he said something about paranoid tendencies if I'm not mistaken.

FOREMAN
Right. Whatever that is, he said it.
(To all)
Let's not forget, we're talking about a boy who's always had murder on his mind.

#12
(proudly)
His unconscious mind.

FOREMAN
(stolidly)
Nobody else's.

#11
I beg pardon, in discussing...

#10
(interrupting, mimicking)
I beg pardon... What are you so polite about?

#11
(looking straight at #10)
For the same reason you are not. It's the way I was brought up.

They stare at each other for a moment. Then #11 turns to the others.

#11
In discussing such a thing as the murder potential we should remember that many of us are capable of committing murder. But few of us do. We impose controls upon ourselves to prevent it. The most these psychiatric tests can accomplish along these lines is this. They can tell us that some day a particular person may commit a murder. That's all. They prove nothing.

MEDIUM SHOT - CENTERED ON #4

#4
Then how come they're admitted in evidence?

MEDIUM SHOT - #'S 10, 11, 12

#11
They have many uses, of course. In this case they added to the general impression the prosecution was trying to create. Perhaps we would find that if we twelve men took the same tests, one or two of us might be discovered to have unconscious desires to kill, and the potentiality of carrying them out. Yet none of us has. To say that a man is capable of murder does not mean that he has committed murder.

#10
(angry)
But it can mean it. Listen, if they said the kid is capable of killing, he could've killed, couldn't he?

MEDIUM SHOT - #'S 7, 8

#7 is looking at his watch and up at the wall clock disgustedly. #8 leans down to #10.

#8
You’re the one who said, and I quote, "I wouldn't give you a nickel for a psychiatrist’s testimony!"

MEDIUM CLOSE UP - #10

He knows he's been trapped, and he's angry about it. He speaks through gritted teeth.

#10
(to #8)
Boy, I'm telling you, I'd like to...

He stops and slams his fist on the table. Then he gets up and walks around the table trying to control himself. Camera pans with him. When he reaches #8 he stands over him for a minute. #8 doesn't look up at him. He stands there staring at #8 blacly.

FOREMAN
(off, nervously)
Listen, just let's take it easy here.

#10 finally walks away from behind #8. Camera holds on #8 for a moment, across table we can see #'s 5, 6, 7. #8 still looks calmly straight ahead. Then he reaches out to the middle of the table and pulls the switch-knife out of the table. He closes it. Then he flicks it open. Then he closes it. While this is happening we hear the following.

#6
What time is it?

#5
There's a clock on the wall right behind you.

At conclusion of these lines, camera is on medium shot of #’s 2, 3, 4, shooting over Foreman’s shoulder.

#3
Don't tell me we’re gonna, start with that. They went over it and over it.

#2
I know they did, but I don't go along with it. The boy is 5 feet 7 inches tall. His father was six two. That’s a difference of seven inches. It's a very awkward, thing to stab down, into the chest of someone who’s more than a half a foot taller than you are.

#3 stands up. He points to the knife.

#3
Give me that.

#2 does so.

#3
Look, you're net gonna be satisfied till you see it again. I'm gonna give you a demonstration.

#3 walks to a position and to the left of Foreman, camera dollying back with him. He looks at table. Camera covers right side of table in background.

#3
Somebody get up.

There is a pause. No one moves for a moment. Then #8 stands up. He walks along the table towards #3. Finally he reaches him. They stand looking at each other for a moment. There is absolute silence in the room.

CLOSE UP - #3

#3
Okay.
(over shoulder to #2)
Now watch this. I don’t want to have to do it again.

He turns back to #8 and looks squarely at him, measuring him.

CLOSE UP - #8

Waiting.

CLOSE UP - #3

#3
I’m six or seven inches shorter than you. Right?

#2
(off)
That's about right. Maybe a little more.

#3
Okay. Let it be more.

MEDIUM SHOT - #'S 3, 8 WITH MOST OF JURY IN BACKGROUND

#3 flicks open the knife, changes its position in his hand and holds it aloft, ready to stab downward. He looks steadily at #8 and #8 at him. Then suddenly he stabs downward hard.

#2
(shouting)
Look out!

The blade stops about an inch from #8's chest. #8 doesn't move.

CLOSE UP - #8

He close3 his eyes for a second and opens them as we hear following two lines over several ad lib remonstrations. Several of the jurors run over to #'s 3 and 8.

#6
(angry)
That's not funny!

#5
(yelling)
What's the matter with you!

CLOSE UP - #3

#3
Now just calm down. Nobody's hurt. Right?

CLOSE UP - #8

#8
(quietly)
No. Nobody's hurt.

MEDIUM SHOT - #'S 3, 8 AND REST OF JURY IN BACKGROUND

#3 looks at the rest of the jury challengingly. No one says anything. Then, still holding the knife at #8's chest, pointing down and in, he speaks over his shoulder to #2.

#3

All right. There’s your angle. Take a look at it. Down and in. That's how I'd stab a taller man in the chest and that’s how it was done. Now go ahead and tell me I’m wrong.

MEDIUM CLOSE UP - #2

He looks at it for a moment and then, after looking up at #3 as though to say same thing, turns away and walks to his seat.

MEDIUM SHOT - CENTERED ON #8

He still stands there as #3 turns, flips the knife into the table and walks away. Several other jurors stand around him, including the Foreman and #12. #12 walks over to him and, using his closed hand, simulated stabbing #8 in the chest.

#12
Down and in. I guess there’s no argument.

He moves to his seat as do some of the other jurors. Several jurors walk to the water cooler, and #7 goes to his jacket on the coat rack for more cigarettes. #8 turns and walks to the table. He takes the knife out of the table and closes it. Camera moves in on him as he flicks the knife open, takes it by the blade with his left hand changes its position in his right hand and makes a downward stab with it. Then quickly he closes it and turns to the table. He stands between the Foreman’s seat and #2’s seat.

MEDIUM SHOT - FOREMAN, #'S 8, 2, 3, SHOOTING OVER #10'S EMPTY CHAIR

#8
Has anyone in here ever stabbed a man?

He is greeted with a few laughs. He looks at #3 as the jurors at the water cooler move to their seats.

#8
Have you?

#3
All right, let's not be silly.

#8
Have you or haven't you.

#3
(loud)

I haven't!

#8
Well where do you get all your in formation about how it’s done? Have you ever seen a knifing?

#3
How do I know!

#8
Don’t you think seeing a man knifed would make a pretty vivid impression on you?

#3 doesn't answer.

#8
Well have you ever seen a knifing?

#3
(loud)
No!

#8
All right. I want to ask you something now. The boy was pretty experienced with one of these things. He was even sent to reform school for knifing some one, isn't that so?

#2
That's right.

#8
All right, take a look at this.

CLOSE UP - #8

He takes the knife, holds it in front of him, and releases the blade. It springs out. Then he takes the blade with his left hand while he changes the position of the knife in his right hand preparatory to stabbing in an overhanded motion. Then he stabs.

#8
Doesn't that seem like an awkward way to handle a knife?

CLOSE UP - #3

#3
(annoyed)

It's the way I'd use a knife if I felt like using a knife.

MEDIUM SHOT - CENTERED ON #8

He closes the knife. Holds it underhanded in front of his belly, and releases the blade.

MEDIUM SHOT - CENTERED ON #5

He stands up swiftly,

#5
(loud)
Wait a minute.

Then he locks around the table, as though remembering something he had never wanted to think of again. He turns toward #3.

#5
Give me that.

He reaches cut for it. #6 walks into the shot, gives him the knife. He takes it, closes it, holds it in his hand gingerly. He looks down at it.

#5
(low)
I hate these things.

#8
Have yen ever seen a knife fight?

#5
Yes.

#8
Where?

#5
On. my stoop. In my backyard. In the lot across the street. Switch-knives came with the neighborhood where I lived. Funny, I wasn't thinking of it. I guess you try to forget those things.

#8
How do you use a switch-knife?

#5
Underhanded.

He flicks it open, and, holding it underhanded, slashes swiftly forward and upward.

#5
Like that. Anyone who's ever used a switch-knife'd never handle it any other way.

#6
Are you sure?

#5
I’m sure.

He closes the blade, and flicks it open again.

#5
That’s why they’re made like this.

#8
(looking at #7)
The boy is pretty handy with a knife, isn't he?

CLOSE UP - #7

#7 looks back at #8 sourly.

MEDIUM SHOT - #'S 3, 4, 5, 8

#8
(to #5)
Do you think he could, have made the kind of wound that killed his father?

#5
Not with the experience he'd had all his life with these things.
(holding up the knife)
No, I don’t think he could. He'd go for him underhanded...

#3
How do you know? What, were you standing right in the room when the father was killed?

#5
No. And neither was anyone else.

#3
(standing, to #8)

You're giving us a lot of mambo-jumbo here! I don't believe it.

#4
(calmly)
I don't think you can determine what type of wound this boy might or might not have made simply because he knows how to handle a knife.

#3
That's right. That's absolutely right.

#8 walks around toward the Foreman's end of the table, camera panning with him. He reaches Foreman's chair. Shot now includes #'s 2, 8, Foreman and 12. #8 looks at #12.

#8
What do you think?

CLOSE UP - #12

He Is confused, trying to be honest. He hesitates for a moment.

#12
Well... I don't know.

#3
(off)
What d'ya mean you don't know?

#12 looks at him silently.

MEDIUM SHOT - #8 AND JURORS ON FOREMAN'S RIGHT, SHOOTING FROM BEHIND FOREMAN

#8 begins to walk down towards #7. Camera moves in as he does. #7 is looking up at the wall clock, and comparing it with his watch. #8 looks at him.

#8
What about you?

#7 looks from the clock to #8. Camera is in close on him now. Then he looks around the table.

MEDIUM SHOT - CENTERED ON #4

#4
Just a minute. According to the woman across the street...

MEDIUM CLOSE UP - #7

#7
(interrupting)
Listen, I'll tell you something. I'm a little sick of this whole thing already. All this yakkin's gettin' us nowhere, so let's break it up here. I'm changing my vote to not guilty.

CLOSE UP - #3

#3
You're what?

MEDIUM SHOT - CENTERED ON #7

He gets up nervously, starts to walk down past #'s 8, 9, 10, 11, 12.

#7
You heard me. I've had enough.

MEDIUM SHOT - #'S 7, 9, 11 IN FOREGROUND, SHOOTING ACROSS TABLE AT #3

#7 is walking towards #11. #3 stands up furiously and leans across table toward #7.

#3
What d'you mean you've had enough? That's no answer!

#7 stops walking. He is behind #10's empty seat. He looks across at #3.

#7
Hey listen you! Just worry about yourself, willya?

#11 turns and looks at #7.

#11
He's right. That is not an answer.

#11 stands up and faces #7, full in camera.

#11
(strongly)

What kind of a man are you? You have sat here and voted guilty with everyone else because there ere some baseball tickets burping a hole in your pocket. Now you have changed your vote because you say you're sick of all the talking here.

#7
Listen buddy...

#11
(overriding him)
Who tells you you have the right to play like this with a man's life? This is an ugly and terrible thing to do! Don't you care...

#7
(loud)
Now wait a minute! You can't talk like that to me!

#11
(passionately)
I can talk like that to you! If you want to vote not guilty then do it because you're convinced the man is not guilty... not because you've had enough! And if you think he's guilty... then vote that way!

#11 reaches the peak of his rage now. #7 blinks at the power of him.

#11
Or don't you have the... the guts to do what you think is right...

#7
Now listen...

#11
(hard)
Guilty or not guilty?

#7
(hesitantly)
I told you. Not guilty.

#11
Why?

#7
I don't have to...

#11
You do have to! Say it! Why?

They stare each other in the eyes for a long moment. Then #7 looks down.

#7
(low)
I... don't think he's guilty.

#11 looks at him disgustedly, then sits down. #7 stands there defeated.

CLOSE UP - #8

#8
I want another vote.

There is a silence in the room.

CLOSE UP - FOREMAN

FOREMAN
Okay, there's another vote called for. I guess the quickest way is a show of hands. Anybody object?

He looks around the table questioningly. There is no answer.

FOREMAN
All those voting not guilty raise your hands.

LONG SHOT - THE ENTIRE JURY, SHOOTING FROM BEHIND #7'S SEAT

#7 is still standing. #10 still sits in chair at side of room. #'s 2, 5, 6, 7, 8, 9, 11 puts up their hands immediately. The Foreman starts to count the upraised hands. Camera moves in slowly, as he counts, on #'s 11, 12 and Foreman himself.

FOREMAN
One. Two. Three. Four. Five. Six. Seven.

The seventh number is #11. #12's hand is down, but his face is a mask of indecision. As the Foreman's counting finger moves past him, he suddenly raises his hand.

FOREMAN
Eight.

The Foreman stops counting and looks around the table. Slowly now, almost embarrassedly, he raises his own hand.

FOREMAN
Nine.

He lowers his hand.

FOREMAN
All those voting guilty.

MEDIUM SHOT - #'S 3, 4, 5, AND IN BACKGROUND AGAINST WALL, #10

#10 jumps to his feet, angrily raising his hand. #'s 3 and 4 raise their hands.

FOREMAN
(Off)
Three.

They lower their hands.

FOREMAN
(Off)
The vote is nine to three in favor of acquittal.

#10 is standing angrily now behind #4.

#10
I don't understand you people! I mean all these picky little points you keep bringing up. They don't mean nothing!

He starts a walk around table. Camera pans with him till he reaches his seat. He stands behind it. He continues to talk during his walk. Everyone is seated at table now but #10.

#10
You saw this kid just like I did. You're not gonna tell me you believe that phoney story about losing the knife, and that business about being at the movies. Look, you know how these people lie! It's born in them!

He whips out a handkerchief and blows his nose.

#10

I mean what the heck, I don't have to tell you. They don't know what the truth is! And lemme tell you, they don’t need any real big reason to kill someone either! No sir!

MEDIUM SHOT - CENTERED ON #5

As #10 talks, #5 gets up from his seat and walks over to the coat rack. He stands with his back to #10.

#10
You know, they get drunk... oh they're very big drinkers, all of 'em, and bang, someone's lying in the gutter. Oh, nobody's blaming them for it. That's how they are! By nature! You know what I mean?
(shouting it violently)
Violent!

MEDIUM SHOT - CENTERED ON #10

#9 gets up from the table and walks to the window, stands with his back to #10 as #10 talks.

#10
Human life don't mean as much to them as it does to us!

#11 gets up and walks to the other window as he goes, #10 whirls to him.

#10
Hey, where are you going?

#11 pays no attention, stands with his back to the window. #10 turns back to the table. He begins to sound slightly desperate.

#10
Look, these people're lushing it up and fighting all the time, and if somebody gets killed, so somebody gets killed! They don't care. Oh sure, there are some good things about 'em too. Look, I'm the first one to say that.

LONG SHOT - THE ENTIRE JURY

#8 gets up and walks to the nearest wall, and stands with his face to it.

#10
I've known a couple who were okay, but that’s the exception, you know what I mean?

#2 gets up, and a moment later so does #6. They each walk to positions along the wall, and stand with their backs to #10.

#10
Most of 'em, it's like they have no feelings. They can do anything. What’s going on here?

CLOSE UP - #10

#10
(louder)
I'm tryin’ to tell you you're making a big mistake, you people. This kid is a liar! I know it. I know all about them! I mean what's happening in here? I'm speaking my piece, and you...

MEDIUM SHOT - THE RIGHT SIDE OF JURY, FROM BEHIND FOREMAN

The Foreman gets up and walks to the water cooler. #12 follows him. They stand with their backs toward #10.

#10
Listen to me! They're no good! There's not a one of ’em who's any good.

#7 gets up and walks to the window, stands with his back to #10.

#10
(looking around wildly)
Boy, are you smart! Well I'm telling you we better watch out! This kid on trial here, his type... Well don't you know about them?

MEDIUM SHOT - CENTERED ON #3

He gets up and, standing at his seat, turns his back on #10. #4 gets up and starts the long walk around the table toward #10

#10
(hysterical)
What are you doing? Listen to me! I’m trying to tell you something!

MEDIUM CLOSE UP - #10

He gesticulates wildly.

#10
There's a danger here! These people are wild! Don't you know about it?
(roaring)
Listen to me!

He turns furiously, and finds himself face to face with #4.

#10
(softer)
Listen to me!

#4 stares at him as he trails off into silence. There is a long pause.

#4
(quietly)
If you open your mouth again I'm going to split your skull!

#4 stares contemptuously at #10. There is no sound, no move. Then #10 looks down at the table.

#10
(very softly)
I'm only tryin' to tell you...

There is a long pause. Then #4 turns and walks away from him.

LONG SHOT FROM ABOVE - THE ENTIRE JURY

The only movement and sound in the room are #4's footsteps. He walks slowly back to his seat. We see the entire room. The other ten jurors stand in various attitudes and postures around the walls of the room, their backs to #10. #4 reaches his chair.

He pulls it out and sits down, Then, slowly, the jurors begin to return to their seats. #10 stands head down, without moving, until the last of the jurors have silently taken their seats.

Then he begins a walk which takes him to a chair at the far end of the room against a wall. He sags into it, beaten. He lowers his head into his hands sits there.

MEDIUM CLOSE UP - #8

As is everyone else, #8 is embarrassed. He looks around the table. Than he clears his throat.

#8
(slowly)
It’s very hard to keep personal prejudice out of a thing like this. And no matter where you run into it, prejudice obscures the truth.

He pauses. There is silence.

MEDIUM SHOT - CENTERED ON #4.

#4 looks at #8 steadily.

#8
(softly)
Well I don't think any real damage has been done here. Because I don’t really know what the truth is. No one ever will, I suppose. Nine of us now seem to feel that the defendant is innocent, but we're just gambling on probabilities. We may be wrong.

MEDIUM CLOSE UP - #8

#8
(looking at #4)
We may be trying to return a guilty man to the community. No one can really know. But we have a reasonable doubt, and this is a safeguard which has enormous value to our system. No jury can declare a man guilty unless it’s sure.

CLOSE UP - #4

Listening.

#8
We nine can't understand how you three are still so sure.

CLOSE UP - #8

He pauses for a moment.

#8
Maybe you can tell us.

MEDIUM SHOT - CENTERED ON #4

He looks strongly at #8.

#4
I'll try.

He looks at #3, and then back to #8.

#4
You've made some excellent points. The last one, in which you "proved" that the boy couldn't have made the of overhand stab wound, that killed his father was very convincing.

He stands up and stretches, and then continues to stand.

#4
But I still believe the boy is guilty of murder. I have two reasons. One: The evidence given by the woman across the street who actually saw the murder committed.

#3
And how, brother! As far as I'm concerned that's the most important testimony.

#4 looks down at #3 with some coldness.

#4
And two. The fact that this woman described the stabbing by saying she saw the boy raise his arm over his head and plunge the knife down into the father's chest. She saw him do it... the wrong way.

#3
(excitedly)
That's right! That's absolutely right!

MEDIUM SHOT - CENTERED ON #8

He listens carefully as goes on, and we can see that he has no real answer to this.

#4
Now let's talk about this woman for a minute. She said that she went to bed at about 11 o'clock that night. Her bed was next to the window and she could look out while lying down and see directly into the boy's window across the street.

LONG SHOT - THE ENTIRE JURY

#4
She tossed and turned for over an hour, unable to fail asleep, Finally, she turned toward the window at about ten minutes after twelve and, as she looked out, she saw the killing through the window of the passing el train.

MEDIUM SHOT - CENTERED ON #4

#4
She says that the lights went out immediately after the killing but that she got a good look at the boy in the act of stabbing his father.
(He simulates an overhand stabbing movement with his arm to accent this statement)
As far as I can see, this is unshakeable testimony.

#3
That’s what I mean! That's the whole case!

#4
(leaning over to #3, and mimicking him)
What do you think?

CLOSE UP - #8

#8 hesitates for a moment, then doesn't answer.

MEDIUM SHOT - CENTERED ON #4

He looks in the direction of #12.

#4
How about you?

MEDIUM SHOT - #12

He has never been sold on voting not guilty, and is now swayed in the opposite direction, yet he is apprehensive about how he will look in the eyes of the other jurors if he shifts his vote again.

#12

Well... I don't know. There's so much evidence to sift.

He pauses, and chews at a fingernail.

#12
This is a pretty complicated business.

He looks around indecisively.

#4
(off)
Frankly, I don't see how you can vote for acquittal.

#12
Well, it's not so easy to arrange the evidence in order...

#3
You can throw out all the other evidence. The woman saw him do it. What else do you want?

#12
(torn)
Well maybe...

#3
(off)
Let's vote on it.

FOREMAN
(off)
Okay. There's another vote called for. Anybody object?

#12
(suddenly)
I'm changing my vote. I think he's guilty.

He looks down at the table, ashamed.

MEDIUM CLOSE UP - #8

Turning his head toward #12, angry, upset, but helpless.

MEDIUM CLOSE UP - #3

Smiling slightly.

#3

Anybody else?

He looks around the table challengingly.

#3
The vote is eight to four.

There is a pause.

MEDIUM SHOT - #'S 11, 12

#12, tormented, gets up and walks to the window.

#11
(to #3)
Why is this such a personal triumph for you, this one vote?

MEDIUM SHOT - #'S 2, 3, 4

#3
(grinning)
I’m the competitive type!
(to all)
Okay, now here’s what I think. I think we're a hung jury. Let's take it inside to the judge.

There is no answer to this.

#3
Well I want to hear an argument. I say we're hung.

He turns toward #8.

MEDIUM SHOT - #'S 7, 8, 9, SHOOTING OVER #3'S SHOULDER

#3
Come on. You're the leader of the cause. What about it?

#8
(quietly)
Let's go over it again.

#3
(annoyed)
We went over it again!
(indicating #12 with a wave of his hand)
Batton, Barton, Durstine and Osborn up there is bouncin' backwards and forwards like a tennis ball...

CLOSE UP - #12

Standing at the window. He turns around.

#12
(hurt)
Say, listen... what d'ya think you're saying here. You have no right to...

MEDIUM SHOT - CENTERED ON #3, SHOOTING BETWEEN #8 AND #9

#4 has his eyeglasses off and polishing him.

#3
(to #12)
I apologize on my knees.
(To #8)
Come on! Let's get out from under this thing. I'm sicka arguing with you already.

#4
(to #3)
There's no point in getting nasty about it. You keep trying to make this into a contest.

#3
(grudgingly)
Okay.

#4
Maybe we can talk about setting some kind of a time limit.

#7
(off)
Once around, to the dealer.

#4 looks witheringly in his direction. Still polishing his glasses he turns around to the wall clock and peers up at it.

#4
It's um...

He squints and then puts on his glasses.

#4
...quarter after six.

He turns back to the table, taken off his glasses and lays them down on the table. He looks tired now. He closes his eyes end clasps his fingers over the marks left by his eyeglasses at the sides of his nose. He rubs these areas as he speaks.

#4
Someone before mentioned seven o'clock. I think that's a point at which we might begin, to discuss the question of whether we're a hung jury or not.

CLOSE UP - #9

He is looking closely at and obviously as thought of some thing tremendously exciting.

#9
(leaning forward)
Don’t you feel well?

CLOSE UP - #4

He Looks up at #9, annoyed.

#4
I feel perfectly well... Thank you.
(to all)
I was saying that seven o'clock would be a reasonable time to...

MEDIUM SHOT - CENTERED ON #9 OVER #4’S SHOULDER

#9
(excited)
The reason I asked about that was because you were rubbing your nose like ...

#9 notes #4 glaring at him.

#9
I’m sorry for interrupting. But you made a gesture that reminded me...

#4
(interrupting)
I’m trying to settle something here. Do you mind?

#9
I think this is important.

#4 looks at him for a moment, then shrugs and leans back, relinquishing the floor.

#9
Thank you.

He looks around the table for a moment, then back at #4.

#9
I'm sure you'll pardon me for this, but I was wondering why you were rubbing your nose like that.

MEDIUM SHOT - #'S 3, 4

MEDIUM SHOT - CENTERED ON #9

#3
(annoyed)
Ah come on now, will ya please!

#9
(sharply to #3)
At this point I happen to be taking to the gentleman sitting next to you.

MEDIUM SHOT - #'S 3, 4, SHOOTING PAST #9'S PROFILE

#3 looks annoyed. During these next lines he sight deeply, gets up from the table and strolls to the water cooler.

#9
(to #4)
Now, why were you rubbing your nose?

#4
Well, if it's any of your business I was rubbing it because it bothers me a little.

#9
I'm sorry. Is it because of your eyeglasses?

#4
It is. Now could we get on to something else?

#9

Your eyeglasses make those deep impressions on the aides of your nose. I hadn't noticed that before. They must be annoying.

#4
(angrily)
They are annoying.

MEDIUM SHOT - #'S 7, 8, 9

#9
I wouldn't know about that. I've never worn eyeglasses.

He points to his eyes and smiles lightly.

#9
Twenty-twenty.

#7
Listen, will you come on already with the optometrist bit!

#9
(firmly to #7)
You have excellent recuperative powers!

#7 looks disgustedly at him. Now #9 turns to #4. Camera moves in on #9's face for close-up.

#9
(quietly)
The woman who testified that she saw the filing had those same marks on the sides of her nose.

CLOSE UP - #4

Digesting this.

LONG SHOT - ENTIRE JURY

There is a silence in the room for a moment. Then we hear a slow babble of ad lib conversation. #9 stands up, very excited.

#9
Please!

The conversation continues.

#9

Please!

It quiets down.

MEDIUM SHOT - CENTERED ON #9

#9
Just a minute, and then I'll be finished. I don't know if anyone else noticed that about her. I didn't think about it then but I've been going over her face in ay mind. She had those marks. She kept rubbing them, in court.

He demonstrates.

#5
(off)
He's right! She did do that a lot.

#7
So what if she did?

#9
This woman was about forty-five years old. She was making a tremendous effort to look thirty-five for her first public appearance. Heavy make-up. Dyed hair. Brand-new clothes that should have been worn by a younger woman. No eyeglasses. Women do that. See if you can get a mental picture of her.

MEDIUM SHOT - #3

At water cooler, glaring at #9. He begins to stride toward the table, camera dollying with him. He ends up standing behind #5 shouting across at #9.

#3
(loud)
What d'ya mean, no glasses'?

#4
(after a pause)
No. They couldn't.

#3
(To #4)
Listen, what are you saying here? I didn't see any marks.

#4
I did. Strange, but I didn't think about it before...

#6
Now that we're talking about it, I saw them. I mean it never occurred to me...

#3 steps back, thinking. #9 leans back and opens up his bottle of pills. He slips one tiny pill under his tongue. He suddenly looks very old and very tired.

MEDIUM SHOT - #8, #9

#8 looks warmly at #9. #9 drops the stopper of his bottle. #8 picks up it for him, smiles at him, hands it to him.

MEDIUM SHOT - #'S 3, 4, 5, SHOOTING PAST #'S 8 AND 9

#3
Well what about the lawyer? Why didn't he say something?

#8
There are twelve people in here concentrating on this case. Eleven of us didn't think of it either.

#3
Okay, Clarence Darrow. Then what about the District Attorney? You think he'd try to pull a trick like that, have her testify without glasses?

#8
Did you ever see a woman who had to wear glasses, and didn't want to because she thinks they spoil her looks?

CLOSE UP - #6

#6
My wife. Listen, I'm telling ya, as soon as we walk outa the house...

#8
(off, interrupting)
Maybe the District Attorney didn't know either.

#6

Yeah, that's what I was just gonna say.

MEDIUM SHOT - CENTERED ON #3

He is stopped by this momentarily. He stares around the room.

#3
Okay. She had marks on her nose. I'm givin' ya this. From glasses. Right? She never wore 'em out of the house so people' d think she was gorgeous. But when she saw this kid kill his father she was in the house. Alone. That's all.

CLOSE UP - #6

#8
(Across to #4)
Do you wear your glasses when you go to bed?

MEDIUM SHOT - #'S 3, 4

#4
No, I don't. No one wears eyeglasses to bed.

LONG SHOT - ENTIRE JUKY

There is silence, save for the sound of the rain. No one moves.

#8
It's logical to say that she wasn't wearing them while she was in bed, tossing and turning, trying to fall asleep.

#3
(angry)
How do you know?

#8

I don't knew. I guessed. I'm also guessing that she probably didn't put on her glasses when she turned, and looked casually out of the window. And she herself said that the murder took place just as she looked out, and the lights went off a split second later. She couldn’t have had time to put glasses on then.

#3
Walt a second...

#8
(strong)
And here's another guess. Maybe she honestly thought she saw the boy knife his father. I say that she saw only a blur.

#3 walks furiously over to #8. Camera dollies in on them.

#3
How do you know what she saw?

He turns to the others.

#3
(lond)
How does he know all these things?

He turns back to #8.

#3
You don’t know what kind of glasses she wore! Maybe she was farsighted. Maybe they were sun glasses! What do you know about it?

#8
I only know that the eyesight is in question now.

CLOSE UP - #11

#11
She had to he able to identify a person 60 feet away, at night, without glasses.

CLOSE UP - #2

#2

You can’t send someone off to die
on evidence like that.

MEDIUM SHOT - #3 STANDING BEHIND #8

#3
Don’t give me that!

#8
Don’t you think that the woman
might have made a mistake?

#3
(shouting)
No!

#8
It’s not possible?

#8 turns away and walks down toward #12, camera panning with him. He speaks to #12's back.

#8
It's not possible.

#12
(quietly)
Yes.

#8 walks around the room, camera panning with him, to #10 who still sits slumped in the chair. He stand over #10.

#8
(softly)
Do you think he's guilty?

#10 shakes his head tiredly, giving in completely. #8 turns to the table.

MEDIUM SHOT - #8 IN FOREGROUND, #'S 6, 7, 9, AND #3 IN BACKGROUND

#3 stands behind #9.

#3
I think he’s guilty!

#8 walks toward the table, camera panning with him. #4 is now in shot.

#8
Does anyone else?

#4

(quietly)
No. I’m convinced.

#3
(angrily to #4)
What’s the matter with you!

#4
I have a reasonable doubt now.

#9
It's eleven to one.

CLOSE UP - #3

He glares angrily at all of them.

#3
(loud)
Well what about all the other evidence? What about all that stuff... the knife... the whole business.

CLOSE UP - #2

#2
You said, we could throw out all the other evidence.

CLOSE UP - #3

Glaring at #2, speechless. New camera dollies hack slowly, holding on #3. He stalks down towards the Foreman's end of the table, not able now to sit down with the others. He stands with his back towards them. There is a long pause. He is full in camera at left of frame. The others, in background, all watch him and wait. #3 doesn't move.

#7
(very subdued)
Well what d’we do now?

There is another long pause.

#5
(to #3)
You're alone.

#3 whirls around furiously.

LONG SHOT - THE ENTIRE JURY, SHOOTING FROM BEHIND #7

#3 is far in background.

#3
(loud)
I don't care whether I'm alone or not. It's my right!

#8, who still stands behind #4, speaks softly but firmly.

#8
It's your right.

They all wait.

CLOSE UP - #3

Watching them an if at bay.

CLOSE UP - #8

Watching.

MEDIUM SHOT - THE FACES OF #'S 2, 4, 5, 6, 7

Watching.

MEDIUM SHOT - THE FACES OF #'S 9, 11, 12, FOREMAN

Watching.

CLOSE UP - #3

Staring at them.

#3
Wait what d’ya want! I say he's guilty.

CLOSE UP - #8

We want your arguments.

CLOSE UP - #3

#3
I gave you my arguments.

CLOSE UP - #8

#8
We’re not convinced.. We want to hear them again. We have as much time as It takes.

LONG SHOT - ENTIRE JURY, SHOOTING FROM BEHIND #7

#3 is far in background. He stands there, frustrated, for a moment. Then he begins. Slowly the camera moves in on him.

#3
Everything... every single thing that came out in that courtroom, but I mean everything... says he's guilty. Do you think I'm an idiot or something? Why dontcha take that stuff about the old man... the old man who lived there... and heard everything, or take the knife, what, just because he... found one exactly like it? That old man saw him. Right there on the stairs. What's the difference how many seconds it was? What's the difference? Every single thing. The knife falling through a hole in his pocket... you can't prove that he didn't get to the door. Sure, you can hobble around the room and take all the time you want, but you can't prove it! And that stuff with the el! And the movies! Now there's a phoney deal if I ever saw one. I betcha five thousand dollars I'd remember the movies I saw the night I killed my father... as if I ever would! I'm telling you, every single thing that went on has been twisted and turned in here. That business with the glasses, how do you know she didn't have them on? The woman testified in court... and that whole thing about hearing the boy yell... Listen, I've got all the facts here! You guys...

He pauses and looks around.

#3
(shouting)
Well what d'ya want? That's it!

CLOSE UP - #8

Waiting.

CLOSE UP - #3

Looking furiously around.

LONG SHOT - THE ENTIRE JURY, FROM BEHIND #3.

#3
That's the whole case!

No one answers.

#3
Somebody say something.

No one does.

#3
You lousy bunch, of bleeding hearts!

No one moves. Everyone watches.

#3
You're not gonna intimidate me!

There is no answer.

#3
I’m entitled to my opinion!

There is no answer. And suddenly he strides swiftly to #8, stands in front of him with utter hatred. Camera moves in on them. #3 clenches his fists and stares at #8. #8 stares impassively back. It seems as though #3 mist inevitably hit #8. #8 waits for it, hands down. #3 half-raises both flats, stands there tensely, his face contorted in silent rage. Then suddenly he turns to the table and bangs both flats down on it. Camera moves in close on his face.

#3
(thundering)
All right!
(Softly now)
Not guilty.

Camera holds on his face close, as he suffers silently, while we begin to hear the quiet noise of chairs being moved and footsteps shuffling about the room. We hear a knock on the door and the door being opened.

LONG SHOT - THE ENTIRE JURY, SHOOTING DOWN FROM BEHIND FOREMAN'S PLACE

Everyone is up. The guard stands in the doorway. Silently the jurors get their belongings and begin to walk toward the door. Camera moves in close on door, catching the face of each juror as he exits.

LONG SHOT - THE JURY ROOM

Only #'s 3 and 8 are left now. #8 walks to the door. He in the doorway and looks back at #3. Then he steps out of the room. #3 still starve at the table, head down. The guard looks at him.

GUARD
(politely)
Let's go, mister.

#3 looks up. Then slowly he goes for his coat. He gets it, puts it on, and slowly walks toward the door. The guard steps outside. As #3 passes the table he stops, then walks over to it. The knife is sticking He reaches over, pulls it cut. He holds it up in front of him and looks at the doorway. Then, with a last burst of anger he flips it into the table. It quivers there. He turns and walks out, slamming the door. The knife quivers in the table in the empty room. Camera moves in for eye level shot of the knife. Behind it we see the window. Rain beats against it.

DISSOLVE TO:

MEDIUM SHOT - A REVOLVING DOOR

The door to the courthouse building, shooting from outside.

Rain beats against it. It begins to turn now, and the jurors start to emerge. One by one they walk into the rain, each reacting with his own maneuvers. One turns up his collar. One pulls down his hat. One holds a newspaper over his head. They begin to move down the steps in groups and singly now. #8 is alone. He walks into close-up, rain hoaxing his face. He raises his collar, looks around, and then, walks off. The others begin to spread out now. Some turning left, some right, same going straight ahead.

Camera moves back and up, ending with a long shot, through the pelting rain, of the steps and the jurors spreading out silently in all directions, never to see each other again.

And finally they are gone, and the rain beats down on the empty steps.

FADE OUT